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KADENA AIR BASE

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MOTOR VEHICLE TRAFFIC SUPERVISION

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This instruction implements Air Force Instruction (AFI) 31-218(I), *Motor Vehicle Traffic Supervision,* AFI 31-115, *Law and Order Operations,* United States Forces Japan Instruction (USFJI) 31-203, *Law Enforcement Procedures in Japan,* USFJI 31-205, *Motor Vehicle Operations and Traffic Supervision*, and provides guidelines, policies, and procedures governing motor vehicle operation, use, storage, and registration on Kadena Air Base (KAB), and Okuma Recreation Facility. This instruction fulfills the AFI 31- 218(I) requirement for an installation motor vehicle instruction. This instruction is the directive and the basis for motor vehicle operations on KAB. Violations of this instruction are subject to disciplinary action. This instruction applies to all United States Armed Forces personnel (including active duty, reserve, cadets, midshipmen, and civilian), their dependents in Japan, US official contractors and their employees under Article XIV, Status of Forces Agreement (SOFA), and United Nations Command, and Rear Liaison Officers visiting United States Forces Japan (USFJ) facilities. It also applies to both appropriated and non-appropriated fund civilians of US Forces, and such other activities, located in Japan at the invitation of USFJ. Further, this instruction, to the extent possible, applies to local and foreign nationals operating vehicles on the installation. This instruction requires collecting and maintaining information protected by the Privacy Act of 1974 authorized by Title 10 U.S.C. 8013 citation and/or Executive Order 9397. System of records notice F0341 AFMC A, *AFMC Badge and Vehicle Control Records* (Jun 11, 1997, 62FR 31793), applies. Refer recommended changes and questions about this publication to the Office of Primary Responsibility (OPR) using the AF Form 847, *Recommendation for Change of Publication*; route

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***SUMMARY OF CHANGES**

This interim change updates base policy regarding passenger liability in driving under the influence (DUI) incidents by establishing a clear, punitive prohibition within the Kadena Air Base Instruction. Specifically, **paragraph 4.6.2** is revised to explicitly prohibit military personnel from riding as a passenger in a motor vehicle when they know, or reasonably should know, that the operator is impaired or has consumed alcohol. Additionally, **Table 4.1,** *BrAC Actions Chart*, and its notes are updated to formally list "Passenger of an Intoxicated Driver" as an offense tied directly to Article 92. A margin bar (|) indicates newly revised material.

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Chapter 1

INTRODUCTION

1.1. Introduction. Driving on Kadena Air Base (KAB) is a privilege that can be taken away if abused. Too many drivers pose a danger to themselves and others on the road. It is the intent of this instruction to establish guidelines and procedures to mitigate these dangers.

1.2. Program Management. This instruction implements policy, assigns responsibility, and establishes procedures for motor vehicle operations and traffic supervision for KAB and assigned jurisdictional areas as outlined in USFJI 31-203, *Law Enforcement Procedures in Japan*. Further, penalties can be assessed for off-installation citations issued by Japanese Police if they have not been adjudicated by another USFJ law enforcement agency. This instruction includes an expansion on the contents of AFI 31-218(I) and USFJI 31-205, *Motor Vehicle Operations and Traffic Supervision*.

1.3. Authority. The provisions of this instruction are in compliance with AFI 31-218(I), AFI 91-207, *The US Air Force Traffic Safety Program*, USFJI 31-203, *Law Enforcement Procedures in Japan,* and USFJI 31-205, *Motor Vehicle Operations and Traffic Supervision*.

1.4. Delegation of Authority. The Installation Commander designates, via this instruction, the 18th Mission Support Group Deputy Commander (18 MSG/CD) or equivalent as the Base Traffic Review Officer (BTRO) for traffic supervision matters, SOFA licensing issuing authority, suspension authority, revocation authority, approving authority for all limited driving requests, and approving authority for re-instatement of suspended or revoked licenses. The 18 MSG/CD, acting as the BTRO, is the final authority for all license and driving issues concerning personnel assigned or attached to the 18th Wing (18 WG), working, residing, or visiting KAB. The 18 MSG/CD acts as the Installation Commander's representative to identify high-risk drivers and authorize the issuance of Suspension and Revocation Letters concerning traffic offenders. The 18th Mission Support Group Commander (18 MSG/CC) will fill this position during the absence of a military or civilian deputy. In addition, the following is delegated:

1.4.1. Special License Issuing Authority: The 18 MSG/CD is delegated special licensing consideration authority for non-SOFA personnel to drive "ON-BASE ONLY" IAW USFJI 31-205, paragraphs 2.1.3 through 2.1.3.1. An "ON-BASE ONLY" license may only be issued to family members, stepparents, or guardians authorized to use base facilities. This special application should be granted based on hardships imposed on members or their families by illness, deployment(s), temporary duty or extenuating circumstances deemed reasonable by the 18 MSG/CD. Non-SOFA personnel visiting KAB can only operate a vehicle outside of the installation if they possess an International Driver Permit recognized by Japan IAW USFJI 31-205. Requests for special licensing consideration should be forwarded via memorandum format through the Security Forces Pass and Registration Office (Building 31, DSN: 634-3437). Personnel granted this special consideration must complete the installation driver's local orientation class/safety course prior to driving or receiving the license. This license will be stamped "ON-BASE ONLY" at the time of issue.

1.4.2. Kadena Disciplinary Action Program (KDAP) Hearing Officer: The 18 MSG/CD serves as the presiding authority during any disciplinary action involving civilian and dependent misconduct within KAB jurisdiction IAW KAB Instruction 51-501, *Civilian and Family Member Misconduct*. Regardless of the action imposed by the KDAP Program Manager, the 18 MSG/CD retains his/her designation as the suspending or revoking authority on KAB for driving privileges.

1.4.3. IAW Marine Corps Installations Pacific-MCB Camp Butler Order (MCIPAC-MCBBO) 11240.1*, Motor Vehicle Registration and Equipment Safety Standards*, the U.S. Marine Corps is the Executive Agency for all vehicle registration requirements, and is located at Camp Foster, Joint Services Vehicle Registration Office (JSVRO). By virtue of registration, personnel are subject to the provisions of MCIPACMCBBO P11240.1 in addition to this instruction. In cases of contradiction, 18 SFS Police Services Office will work with JSVRO to provide guidance.

1.4.4. Squadron Commanders and Agency Chiefs are granted authority to issue suspensions or restricted driving privileges up to 30 days, when they discipline an assigned military member for misconduct, whatever the type and however disciplined. IAW AFI 24-301, *Ground Transportation*, unit Commanders or designee should notify LRS/OR&L of all suspension/reinstatement actions via AF Form 2293, *US Air Force Motor Vehicle Operator Identification Card*. Squadron Commanders and Agency Chiefs must consult 18 WG/JA prior to issuing a suspension or restricting driving privileges. Further, the unit must notify the 18 SFS/Reports and Analysis office by providing a copy of the memorandum that suspended or restricted an individuals' driving privileges to the Reports and Analysis organizational email box (**18SFS.S5.ReportsandAnalysis@us.af.mil**). Memorandum templates can be acquired from the same office via e-mail or DSN: 634-1138. Any suspensions or combinations of suspensions and restrictions over 30 days must be referred to 18 MSG/CD for approval/disapproval.

1.4.5. Squadron Commanders and Agency Chiefs will implement a system to track internal suspensions and restrictions. In lieu of a suspension, Squadron Commanders and Agency Chiefs may issue restricted driving privileges for up to 30 days. The memorandum for restricted driving privileges can be acquired from the 18 SFS/Reports and Analysis office. Squadron Commanders and Agency Chiefs should consider the need for restricted driving privileges before making a determination of an outright suspension. If a suspension is given and the need for restricted driving privileges arises prior to the conclusion of an individual's suspension, the Squadron Commander or Agency Chief must send a new memorandum outlining the restricted privileges to 18 SFS/Reports and Analysis organizational email inbox. However, those restricted privileges will only be in effect until the conclusion of the original suspension, not to exceed the 30-day limit.

Chapter 2

DRIVING PRIVILEGES

2.1. Requirements for Driving Privileges. IAW AFI 31-218(I), USFJI 31-205 and this instruction, driving a vehicle whether government motor vehicle (GMV) or privately owned vehicle (POV), on and off-base is a privilege granted to SOFA members. On base only privileges are granted to those 16 or 17 years of age and non-SOFA members by the Installation Commander or designee (18 MSG/CD). Persons who accept the privilege must comply with U.S. and Government of Japan (GOJ) laws, regulations, and instructions governing motor vehicle operations. Consequently, all personnel driving on KAB, or SOFA members driving within 18 SFS jurisdiction (outlined in USFJI 31-203), must maintain and produce the following upon request from Security Forces:

2.1.1. A valid USFJ Form 4EJ, *U.S. Forces, Japan Operator's Permit for Civilian Vehicle (PA)*, for the type of motor vehicle to be operated, a valid Japan driver's license, an International Driver's Permit recognized by Japan, U.S. Embassy Driving Permit, or a GMV license (or other documents IAW Figure 1 and 2. of USFJI 31-205). **NOTE:** A valid state driver's license is required when operating a motor vehicle, and for all issuance and renewals of USFJ Forms 4EJ (exceptions are outlined in USFJI 31-205).

2.1.2. AF Form 2293, *U.S. Air Force Motor Vehicle Operator Identification Card*, service branch equivalent or documentation prescribed from the Department of Defense (DoD).

2.1.3. Proof of vehicle ownership/Motor Vehicle Title or installation vehicle registration as required.

2.1.4. Official DoD Identification (ID) Card or other appropriate identification for non-DoD civilians. Master Labor Contract (MLC) and Indirect Hire Agreement (IHA) employees must obtain an appropriate installation pass.

2.1.5. Proof of current Japan Compulsory Insurance (JCI) and Property Damage Insurance (PDI). Both documents issued by the insurance company must have a policy effective date and an expiration date.

2.1.6. Current year USFJ Form 15A, *Vehicle Registration Decal (For use on 4-Wheel vehicles)* or USFJ Form 15B, *Vehicle Registration Decal (For use on 2-Wheel vehicles)*, properly affixed to the motor vehicle.

2.1.7. Valid Government of Japan vehicle registration certificate.

2.1.8. Annual Road Tax payment receipt.

2.1.9. The following requirements apply to personnel on temporary duty (TDY) to KAB operating GMVs and POVs: Utilize Department of Defense Manual (DoDM) 4500.36, *Acquisition, Management, and Use of DoD Non-Tactical Vehicles*, and AFMAN 24-306, *Operation of Air Force Government Motor Vehicles,* for guidance on official use of GMV's.

2.1.10. Personnel TDY to KAB for a period of 90 days or less, and in possession of a valid stateside license, may operate GMVs on-base only after the sponsoring unit vehicle control official (VCO) has provided the individual a briefing approved by the 18 WG/SE. Military and civilian personnel must have a valid DoD issued Common Access Card (CAC) and Stateside driver's license to operate a GMV. TDY members can operate a general purpose GMV on-base only. TDY members are not authorized to operate a Non Tactical Vehicle (NTV), vehicles with a capacity to carry nine or more passengers, or vehicles with a Gross Vehicle Weight Rating (GVWR) that is more than 26,000 lbs, without an AF Form 2293.

2.1.11. Personnel TDY to KAB for a period of 90 days or less, and in possession of a valid GMV license issued from any military base (i.e. AF Form 2293) may operate GMVs off or on base after the sponsoring unit VCO has provided the individual a briefing approved by 18 LRS and 18 WG/SE.

2.1.12. All personnel who are TDY to KAB for more than 90 days are required to obtain a USFJ Form 4EJ prior to operating a POV or GMV on or off base, regardless of whether they have a stateside license or a GMV license. Personnel can obtain a USFJ Form 4EJ IAW **paragraph 2.2.4** by attending the formal class administered by 18 WG/SE, which is offered weekly during the newcomer's briefing or as provided in **paragraph 2.2.10**.

2.1.13. All personnel TDY to KAB operating a GMV or POV on or off base must maintain the appropriate license (as outlined in paragraphs **2.2.2.1** through **2.2.2.3**) on their person.

2.2. SOFA Driver Training.

2.2.1. The 18th Wing Safety Office (18 WG/SE). Is responsible for providing SOFA driver safety training to all 18 WG or KAB-assigned personnel requesting a USFJ Form 4EJ driving permit.

2.2.1.1. The Pass and Registration Office will issue USFJ Forms 4EJ to U.S. Air Force personnel and/or affiliates having SOFA status under Article I of the SOFA (i.e. SOFA sponsored Army and Air Force Exchange Services [AAFES], Department of Defense Education Activity [DoDEA], USAF contractors or others affiliates possessing an approved Support Agreement with the 18th Wing) after presenting a certificate or letter of completion from 18 WG/SE office. Personnel requesting a USFJ Form 4EJ must have the following as applicable: Kadena issued ID card (for civilian contractors), DoD Contractor Common Access Card (CAC), Active Duty CAC card, DD Form 1173, *Uniformed Services Identification and Privilege Card* (dependent ID card), DoD civilian CAC card, current stateside driver's license (exceptions outlined in USFJI 31-205), Schilling Community Center certificate of completion (if applicable), or International Driver's Permit recognized by Japan. The member will also show proof of Date Eligible to Return from Overseas (DEROS) date (orders and/or Single Unit Retrieval Form (SURF) for military members and Letter of Employment for civilians or contractors). The 18 SFS Pass and Registration Office will maintain a database of all active USFJ Form 4EJ holders by category.

2.2.1.2. Renewal of the USFJ Form 4EJ, with an expired state license, may be requested after documentation is presented showing the respective state grants license extensions until the individual returns from overseas. The requirement to provide the aforementioned documentation is on the individual, not Security Forces.

2.2.1.3. For those members with an expired state license whose state does not permit extension while overseas, renewal by mail, etc., the 18 MSG/CD may grant a waiver for a renewal of the USFJ Form 4EJ. Waivers may be granted if the individual's driving record at the installation is in good standing, not subject to suspension or revocation, and the individual provides proof that they attempted to renew their license, and confirmed that service is not available while overseas. For those transferring to Japan from Outside Continental United States (OCONUS) and unable to renew their state driver's license since, the USFJ Form 4EJ may be issued after confirming the member's acceptable driving performance with the previous command. In addition, members must attest to the fact that their expired state driver's license has not been revoked, suspended, or removed for cause.

2.2.1.4. Once the USFJ Form 4EJ is issued by the sponsoring installation, the operator's permit is valid until expiration for all USFJ installations and facilities in Japan. This includes personnel who have to Permanent Change of Station (PCS) from one USFJ installation to another and U.S. Forces personnel traveling TDY within country. However, training specific to local driving conditions is necessary for personnel who PCS to another installation in Japan.

2.2.1.5. Personnel who are in possession of a USFJ Form 4EJ that has been expired for 30 days or more must attend the 18 WG/SE briefing and pass the written exam before a new permit will be issued.

2.2.1.6. Personnel who do not possess a valid USFJ Form 4EJ will not be allowed to operate a vehicle, except as specified in this instruction.

2.2.1.7. Personnel who have physically lost their USFJ Form 4EJ will obtain written authorization (standard memo format) from their sponsor's Squadron Commander, Agency Chief, or First Sergeant before a replacement USFJ Form 4EJ will be reissued.

2.2.1.8. IAW Government of Japan (GOJ) law, POVs must pass a safety inspection usually every two years. A POV imported from the U.S., regardless of year of manufacture, will be considered a new vehicle when first presented for Japanese inspection. The owner must comply with the three year requirement; Motor Vehicle Tonnage Tax must also be paid for the full three year period. JCI coverage is required for the length of the inspection period. Prior to issuance of the inspection certificate and inspection sticker (issued upon successful completion of inspection), proof of valid JCI and PDI must be presented to inspection officials. The year period of validity for safety inspections is annotated on each Japanese vehicle title.

2.2.1.9. Juvenile applicants, defined as those aged 15 through their 18th birthday, may be issued a permit to operate vehicles on the installation with approval of the 18 MSG/CD, following a favorable disciplinary review from Security Forces, base legal office, KDAP, and/or DoDEA, as required. Applicants must bring proof of driving course registration/purchase (i.e., a receipt from the Schilling Community Center for a First Time Driver's Education Course [DEC]) to Pass and Registration to be issued a "STUDENT ON BASE" permit. All applicants below the minimum age of 18 years old will be issued permits clearly stamped "STUDENT ON BASE" or "ON-BASE ONLY." This procedure is established to ensure applicants and their sponsors are aware of this policy. **NOTE**: Applicants issued "STUDENT ON BASE" or "ON-BASE ONLY" permits are restricted from driving beyond any base installation gate or from parking their vehicles in areas where

they will have to re-enter through an installation gate (i.e., Visitor Center parking lots at gate-1 and gate-2). Drivers under the age of 18 years old entering through installation gates from off base with a USFJ Form 4EJ stamped "ON-BASE ONLY" will be considered to have driven off base and will be issued a citation for the offense. Additionally, operating a vehicle off base with an on-base restricted license warrants an automatic 6-month revocation of driving privileges with no exceptions to this policy.

2.2.1.10. Student Permits. Upon an individual's 15th birthday and after registering for a First Time DEC at the Schilling Community Center, students will be issued a USFJ Form 4EJ stamped "STUDENT ON BASE" and "Must be accompanied by parent or guardian at all times." The Student Permit is valid from the date of issuance through 90 days following the student's scheduled DEC completion date. **NOTE:** Attendance at the Schilling Community Center 2-hour refresher course is not required for issuance of a Student Permit and does not satisfy any portion of the First Time DEC requirement under USFJI 31-205.

2.2.1.11. Student Driving Permits allow young drivers an opportunity to practice driving on base only and under the supervision of their licensed (e.g., holder of a valid USFJ Form 4EJ) parent, guardian or driving instructor until they are able to successfully complete the certified course offered by the Schilling Community Center. Upon completion of the DEC, students are eligible to receive an unaccompanied, "ON-BASE ONLY" permit.

2.2.1.11.1. The Schilling Community Center 2-hour refresher course is available to SOFA-sponsored personnel for two purposes: (1) voluntary familiarization with driving conditions specific to Japan, and (2) point reduction for personnel who have received traffic citations under this instruction. The refresher course is not a recognized pathway toward initial issuance or renewal of a USFJ Form 4EJ and does not satisfy the certified formal driver training requirement established in USFJI 31-205. Members with an expired stateside driver's license seeking to gain driving privileges in Japan will not be directed to or accepted from the refresher course as a remedial measure and will be processed under the applicable provisions of paragraphs **2.2.1.2** through **2.2.1.3** of this instruction.

2.2.1.12. IAW USFJI 31-205 paragraph 2.2.1.3, SOFA-Sponsored personnel who possess a current, valid operator’s permit from one of the following countries may be issued a USFJ Form 4EJ. The countries are Australia, Austria, Belgium, Canada, Czech Republic, Denmark, Finland, France, Germany, Greece, Iceland, Ireland, Italy, Luxembourg, Netherlands, New Zealand, Norway, Portugal, South Korea, Spain, Sweden, Switzerland, Taiwan, and the United Kingdom.

2.3. Stopping for Vehicle and Personnel Inspections. IAW AFI 31-101, *Integrated Defense (ID)*, and KAB Plan 31-101, *Integrated Defense Plan*, the Installation Commander is responsible for protecting personnel and property under his or her jurisdiction, and maintaining good order and discipline on the installation. Although not all-inclusive, this is accomplished through aggressive programs such as:

2.3.1. Random Installation Entry/Exit Point Checks (RIEPC).

2.3.2. Sobriety checkpoints.

2.3.3. Unannounced checkpoints for the safety and security of the Wing.

2.3.4. Force protection measures, e.g. random anti-terrorism measures (RAMs). **NOTE:** Personnel attempting to elude or evade one of these checks or checkpoints, or those failing to submit to a check/inspection specified in paragraphs **2.3.1** through **2.3.4** will lose their driving privileges for a minimum of one year.

2.4. Implied Consent to Blood, Breath or Urine Test. IAW AFI 31-218(I), and USFJI 31-205, Japan is the legal issuing authority for U.S. Forces to operate a SOFA registered vehicle on and off USFJ installations, and to drive any vehicle using a USFJ Form 4EJ. Implied consent is therefore a pre-condition for anyone operating a USFJ registered vehicle, GMV or POV, in Japan regardless of location. This consent applies when lawfully detained, apprehended, or cited for any impaired or intoxicated driving offense committed while driving or in physical control of a motor vehicle, regardless of the intoxicated driving incident. Failure to take or complete a lawfully requested test is considered a refusal and will result in an immediate suspension or revocation of driving privileges.

2.5. Failure to Pass Or Refusal to Take Blood, Breath, or Urine Test. If an individual subject to this instruction fails a test or refuses to take a test, their driver's license will be immediately confiscated for inclusion in the incident report IAW **paragraph 2.6.1.3**. **NOTE:** Non-SOFA members will not have their license confiscated. However, they will still be issued a suspension or revocation of driving privileges letter signed by the Base Traffic Review Official (BTRO).

2.6. Suspension or Revocation of Driving Privileges. IAW AFI 31-218(I) and USFJI 31-205, the Installation Commander, or designee, may suspend or revoke driving privileges and POV registration for reasons related or unrelated to traffic offenses occurring on and off the installation. Suspension or revocation of installation driving and registration privileges is authorized for SOFA and non-SOFA military personnel, family members, DoD civilian employees, contractors, and other individuals with installation driving privileges. Suspension and revocation authority is delegated to the 18 MSG/CD, IAW **paragraph 1.4** of this instruction. The 18 MSG/CD may also suspend or revoke licenses for up to 12 months if a driver continually violates installation-parking standards or habitually violates other standards considered non-moving in nature.

2.6.1. Suspension for the purpose of this instruction is 179 days or less and revocation for the purpose of this instruction is 180 days or longer.

2.6.1.1. Suspensions and revocations of driving privileges apply to all USFJ installations throughout Japan. Suspension and revocation applies to all motorized vehicles on and off base operated by SOFA status personnel.

2.6.1.2. If not immediately confiscated, all Air Force issued USFJ Forms 4EJ (active duty, dependent, and civilian) provided to drivers whose driving privileges are suspended or revoked will be surrendered to either their Unit Commander (or sponsor's Unit Commander), Agency Chief or First Sergeant. The USFJ Form 4EJ will then be turned over to 18 SFS Reports and Analysis office (18 SFS/S5R).

2.6.1.2.1. If restricted or limited driving privileges are granted, a new USFJ Form 4EJ must be issued and remarks annotated on the permit indicating the limit or the specific privilege.

2.6.1.2.2. Local national employees with a Defense Biometric Identification System (DBIDS) Contractor/Civilian Employee Card will be flagged in the DBIDS system and marked as "No Driving Privileges" or "Limited Driving Privileges."

2.6.1.2.3. The 18 SFS Reports and Analysis office will notify the OR&L office within LRS each time an Air Force member's driving privileges are suspended, revoked, or reinstatement.

2.6.1.3. Security Forces personnel will immediately suspend or revoke driving privileges, and confiscate driver's permits, from individuals who have been apprehended or detained when evidence indicates the individual committed Intoxicated Driving or was Driving Under the Influence (DUI), refused to acknowledge the implied consent policy, or is apprehended/cited for reckless driving.

2.6.1.3.1. Licenses confiscated by 18 SFS will be attached to the report or ticket, and will be maintained in the Security Forces Reports and Analysis Office. If determination to reissue is made, a new license will be issued at the Pass and Registration Office via authorization from the 18 MSG/CD.

2.6.1.3.2. For local national employees, their DBIDS Contractor/Civilian Employee Card will initially have one hole punched in the upper left corner of the photo. On the reverse, the date it was punched will be written with permanent marker. The DBIDS Card will be returned to the individual and they will be instructed to report to Pass and Registration with the punched DBIDS Card to have a new one issued on the next business day. After three business days have passed without reporting to Pass and Registration, the individual attempting to gain access to the installation will be denied entry and directed to the Pass and Registration Office for issuance of a new DBIDS Card. The new DBIDS Card will indicate any driving restrictions printed in red ink on the front of the card. **NOTE:** Licenses issued by the Government of Japan (GOJ) WILL NOT be confiscated or altered.

2.6.1.4. Unit Suspension and Restricted Driving Privileges are outlined in paragraphs **1.4.4** and **1.4.5** of this instruction.

2.6.1.5. Notification of Suspension or Revocation of Driving Privileges. When circumstances warrant an individual's driving privileges to be suspended or revoked, a letter will be forwarded from the 18 SFS Reports and Analysis office to the individual's Commander. The memorandum is forwarded on behalf of the Installation Commander through his designee (18 MSG/CD) notifying the Unit Commander (or Staff Agency Chief and the 18th Comptroller Squadron Commander [18 CPTS/CC] for wing staff agencies) and First Sergeant (if applicable) of follow-on actions IAW this instruction.

2.6.1.5.1. The letter applies to military, civilians, family members, dependents, and contractors. The memorandum will include the reason for the suspension, length of suspension, and a statement explaining the suspension applies both on and off base. Additionally, the letter will include information on due process and how to schedule a hearing with the BTRO if warranted. BTRO hearings must be approved by the BTRO officer, and are not guaranteed.

2.6.1.5.2. Commanders will ensure the affected driver is notified immediately and will instruct them to report to the 18 SFS Reports and Analysis Office to acknowledge the order. If the individual is TDY or on leave, the individual will report to the 18 SFS Reports and Analysis Office within seven calendar days upon return to acknowledge the order. **NOTE:** Individuals will be entered into DBIDS to ensure timely reporting.

2.6.1.6. Operators involved in alcohol related driving incidents will be processed IAW **paragraph 4.6**.

2.6.2. Revocation of Driving Privileges.

2.6.2.1. In situations where the SOFA registrant's driving privilege is revoked and the USFJ Form 4EJ is confiscated, the USFJ registrant will report to the JSVRO within 14 calendar days to deregister their vehicle. If their vehicle was impounded due to a traffic violation, the registered owner must report within 10 days after the vehicle is released from the Joint Service Vehicle Impound Lot for de-registration with the Japanese authorities.

2.6.2.2. When an individual's driving privileges are revoked, and the USFJ Form 4EJ is confiscated, all vehicles registered to that individual will be deregistered IAW MCIPAC-MCBBO 11240.1 (or superseding instruction) at JSVRO within 10 duty days. **NOTE:** This paragraph does not apply to Unit Commander directed suspensions. The following exceptions are automatic for 18th Wing personnel:

2.6.2.2.1. Only the primary vehicle utilized by the individual whose license was revoked will be deregistered, allowing spouses and dependents to operate family owned vehicles without impact.

2.6.2.2.2. If deregistration of the vehicle will cause hardship, financial or otherwise, the individual can petition the BTRO authority (18 MSG/CD) for authorization to maintain a registered vehicle throughout the revocation. This authorization must be provided to JSVRO for their records.

2.6.2.3. Personnel who are serving a driving revocation, and not granted restricted driving privileges must make arrangements to sell, transfer or properly dispose of (deregister) their vehicle within 30 days of being notified of disapproval. For non-SOFA personnel, their vehicle must only be deregistered from military installations through JSVRO.

2.6.2.4. Local nationals whose driving privileges are suspended or revoked will not receive their confiscated vehicle sticker or temporary pass due to the fact that it will be sent to JSVRO for deregistration.

2.6.2.5. The foregoing action does not apply to spouses or dependents who are without registration privileges and whose driving privileges are revoked. Ensuring a spouse or dependent does not drive without an operator's permit is the responsibility of the sponsor.

2.6.2.5.1. U.S. Forces personnel, military retirees, or any other person whose driving privileges are revoked, are not authorized to operate any motor vehicle on any USFJ installations. Additionally, all SOFA personnel who have had their driving privileges suspended or revoked are prohibited from operating a motor vehicle within USFJ jurisdiction unless granted restricted driving privileges. Specifically included in this restriction is the use of a GOJ driver's license to operate a GOJ licensed vehicle on KAB. This restriction applies to all motorized vehicles, while in effect.

2.6.3. Multiple suspensions/revocations will run consecutively unless otherwise determined by the BTRO.

2.7. Reciprocal Procedures. IAW AFI 31-218(I), the Installation Commander or designee (18 MSG/CD) will honor reciprocal suspensions or revocations issued by other Installation Commanders regardless of service component affiliation. Revocations remain in effect during reassignment unless the issuing authority terminates the revocation before reassignment. Anyone with suspended or revoked privileges may petition for restricted (partial or limited) driving privileges.

2.7.1. For off-base suspension and revocation requests, upon receipt of written notice from Japanese authorities, the Installation Commander or designee (18 MSG/CD) in coordination with 18 WG/JA will initially suspend or revoke both GMV and POV driving privileges pending final resolution of the host nation case.

2.8. Administration Due Process for Suspensions and Revocations. Members who are cited for violations that result in a loss of driving privileges will be afforded due process except as specified below. Affected members will have seven calendar days from notification to request a hearing to the BTRO prior to a final decision being made regarding revocation of driving privileges. Affected drivers may waive the right to a hearing (in writing) at any time during the seven day period and begin the suspension or revocation period. If the hearing request is approved, the BTRO may choose to meet with the individual in person, or issue a decision based solely on the written evidence provided for each case. Suspensions/Revocations take effect upon receipt of the BTRO's final decision. If the cited member fails to submit a request for a hearing within seven calendar days, or refuses presented BTRO options, the revocation will automatically become effective at 0001L time on the 8th day.

2.8.1. The following violations will result in an automatic revocation of driving privileges with no opportunity for BTRO due process consideration:

2.8.1.1. Driving a vehicle off base with an on-base ONLY license.

2.8.1.2. Driving on a student driver permit without a licensed driver in vehicle.

2.8.1.3. Driving under a suspension or revocation on/off base.

2.8.1.4. Driving without insurance.

2.8.1.5. Driving with expired or without an issued USFJ Form 4EJ license.

2.8.1.6. Driving under the influence of an illegal substance or while on over the counter or prescription medications which impairs the ability to operate a motor vehicle.

2.8.1.7. Intoxicated Driving = 0.08% Breath Alcohol Concentration (BrAC)/Blood Alcohol Content (BAC) or above.

2.8.1.8. Driving under the Influence (DUI) = 0.03% - 0.079% BrAC/BAC.

2.8.1.9. Under the legal drinking age with any detectable amount of alcohol in the person's system/possession.

2.8.1.10. Failing to submit to a Random Installation Entry/Exit Point check, or refusal to submit to a sobriety (alcohol) checkpoint.

2.8.1.11. Refusal to submit to breath (BrAC), blood (BAC), or urine test.

2.8.1.12. Cited with reckless operation of a vehicle or vessel (with/without injuries).

2.8.1.13. Exhibition of Speed.

2.8.1.14. Refusing to submit to a chemical test for the purpose of determining BrAC/BAC.

2.8.1.15. Charged with fleeing the scene of an accident (with/without injuries).

2.8.2. In unusual circumstances, the 18 MSG/CD, in coordination with the 18 WG/JA, may authorize an immediate verbal/written suspension or revocation of driving privileges, based on evidence and nature of the offense.

2.9. Alcohol and Drug Abuse Programs.

2.9.1. For 18 WG assigned personnel, IAW AFI 31-218(I) and AFI 44-121, *Alcohol and Drug Abuse Prevention and Treatment (ADAPT) Program*, Commanders will refer military personnel involved in an alcohol or drug related motor vehicle incident to the 18th Medical Group (18 MDG) Mental Health office.

2.9.2. If the initial suspension or revocation was based on either of the aforementioned substances, the reinstatement letter will include verification of completion of the required substance abuse course.

2.10. Restoring Driving Privileges. All reinstatements from a suspension or revocation will be requested in writing and processed through the Reports and Analysis Office. Suspensions or revocations administered through the individual's unit will be reinstated through the individual's unit IAW **paragraphs 1.4.5**.

2.10.1. Driving privileges will be automatically restored when an official report or finding determines lack of evidence, not guilty or when charges are dismissed or reduced to an offense not meeting the suspension or revocation criteria. However, if a Commander or the Japanese Police merely choose not to take action despite the evidence, the suspension or revocation stands since the authority remains with the BTRO.

2.11. Restricted Driving Privileges.

2.11.1. Unless prohibited by higher authority, host-nation authority, or other publication, the 18 MSG/CD may authorize limited driving privileges to those whose authority to drive on military installations was suspended or revoked by the 18 WG. Restricted driving privileges will not be granted to any person whose driver's license is under suspension or revocation by a State, Federal, or Japanese licensing authority.

2.11.2. Restricted driving privilege requests for suspensions of 30 days or less will not be honored, except for hardship situations (i.e. single parent, spouse deployed, or severe medical condition).

2.11.3. Requests for restricted driving privileges must be endorsed by the Unit Commander (or 18 CPTS/CC for wing staff agencies) or Agency Chief, and processed through the Reports and Analysis Office within 14 calendar days of notification of the suspension or revocation. Failure to submit within 14 calendar days constitutes forfeiture of the request.

2.11.3.1. The requestor will identify the vehicle to be driven, the location and occasion in which the vehicle may be driven. Specify driving privileges that are mission essential or necessary to avoid family hardship. The following facilities may be considered mission essential: medical facilities for emergencies, base gas station, commissary/Base Exchange (BX), schools for children, places of worship and work. A copy of the limited driving letter

will be kept in the vehicle at all times. For additional guidance on the letter, contact the 18 SFS Reports and Analysis Office at 634-1134.

2.11.4. Personnel granted POV restricted driving privileges will take their restricted driving privileges letter to the Pass and Registration Office, who in-turn will issue a new USFJ Form 4EJ with the restrictions annotated in the remarks section. Personnel granted limited or regular GMV driving privileges must submit the letter to 18 LRS OR&L for reissue. Non- SOFA members must maintain a copy of the letter on their person at all times while operating a vehicle on military installations.

2.11.5. If restricted privileges are granted and individuals are subsequently found at fault in a vehicle accident or cited for a moving violation, restricted driving privileges are void and the original suspension or revocation is reinstated, retroactive from the date of the initial suspension or revocation. Unit and offender notifications are the only requirements.

2.12. Extension of Suspensions and Revocations. Individuals who drive while on a suspension or revocation will have an additional two years (five years for U.S. Army personnel) added to the original suspension or revocation time period. Additional administrative or disciplinary actions may also be taken by the Unit Commander or KDAP.

2.13. Reciprocal State-Military Actions.

2.13.1. IAW AFI 31-120, *Security Forces Systems and Administration*, Reports and Analysis will notify state licensing agencies of DoD personnel whose installation driving privileges are revoked for one year or longer following final adjudication of an intoxicated driving offense or upon refusal to submit to a lawful Blood Alcohol Content (BAC)/Breath Alcohol Concentration (BrAC) test. **EXCEPTION:** This action will not be taken against non-SOFA personnel unless the individual is a U.S. citizen. The following is applicable:

2.13.1.1. Personnel whose driving privileges are suspended or revoked by state, federal, or Japanese licensing authority are ineligible for any driving privileges to include limited or restricted.

Chapter 3

MOTOR VEHICLE REGISTRATION

3.1. Registration Policy. Vehicle registration and safety procedures, requirements, and forms will be updated IAW AFI 31-218(I), USFJI 31-205, and this instruction.

3.1.1. United States Armed Forces personnel, dependents, and members of the civilian component falling under the SOFA stationed on Okinawa will present all privately owned motor vehicles and trailers to the JSVRO for registration. The JSVRO is located on Camp Foster. Vehicle registration policies and requirements will be IAW MCIPAC-MCBBO 11240.1 or superseding instruction.

3.1.2. Registered owners of POV's are responsible for ensuring all insurance requirements (JCI and PDI) as well as the provisions of AFI 31-218(I), USFJI 31-205, and MCIPAC-MCBBO 11240.1 are met before a vehicle is operated. Failure to have or maintain proper insurance (JCI/PDI) will result in a suspension and impoundment of the motor vehicle.

3.1.2.1. MLC, IHA, Non-SOFA U.S. military retirees, Non-SOFA U.S. civilians, Local National (LN) civilian taxi cab drivers, and reservists who are either employed by or contracted to the U.S. Forces, or the accompanied guest of USFJ personnel who wish to operate a vehicle on KAB will register their vehicle with the JSVRO, but not have permanent registration privileges. Those who have been issued an ID card, and are allowed to enter KAB for contract work will register their vehicles with JSVRO.

3.1.3. Vehicles will be kept in working order at all times. Owners with vehicles cited for safety defects or illegal modifications in violation of MCIPAC-MCBBO 11240.1 will have five calendar days to correct the defect and must report to JSVRO when complete for verification. Once verified JSVRO will stamp DD Form 1408, *Armed Forces Traffic Ticket*, and the member will return to Building 705, Room 214 on KAB for further processing.

3.1.4. DBIDS Visitor Pass or AF Form 75, *Visitor/Vehicle Pass* (when DBIDS is off-line), are used to control and identify personnel and vehicles on a temporary basis.

3.1.4.1. Pass length will be determined by need for issuance IAW KAB Plan 31-101.

3.1.4.2. Passes exceeding 72 hours will be issued by the Pass and Registration Office IAW KAB Plan 31-101 unless otherwise directed by Security Forces Operations (18 SFS/S3), the 18th Security Forces Squadron Commander (18 SFS/CC), or higher authority.

3.1.5. USFJ and local national registrants with administrative restrictions imposed upon their driving privileges will report to the JSVRO with their vehicles for a temporary vehicle pass issued IAW the following:

3.1.5.1. Temporary Vehicle Pass will be issued through JSVRO in lieu of military registration to designate specific driver restrictions imposed upon registrant. In cases where restriction to the driving privileges of a registrant are imposed by a Unit Commander, Agency Chief, First Sergeant, traffic court officer, or other authorized official, the registrant will report to the JSVRO within 10 working days of such restriction to have the Military Registration cancelled. The military registration and all military registration decals will be surrendered for a temporary vehicle pass with annotated restrictions.

3.1.5.2. JSVRO is the office of primary responsibility to issue passes valid for all installations.

3.2. Registration.

3.2.1. Personnel desiring to operate vehicles on Okinawa must meet registration requirements as outlined in AFI 31-218(I), USFJI 31-205, and MCIPAC-MCBBO 11240.1. Personnel desiring registration must contact JSVRO for specific requirements.

3.2.2. Temporary Registration. Pending the completion of permanent registration requirements, personnel must obtain and affix temporary license plates to all motor vehicles and trailers before operation. Imported motor vehicles without a Japanese inspection, newly purchased motor vehicles without a Japanese inspection, vehicles with expired Japanese inspections, and POV(s) with cancelled inspections will not be operated without proper display of temporary license plates. Trailers without a valid Japanese inspection will not be towed without properly displaying a temporary license plate.

3.2.3. Temporary license plates are valid for three working days and will be immediately returned to JSVRO when the vehicle has passed inspection. Failure to return the plates within one working day after the rental period has expired will result in driving privileges (USFJ Form 4EJ) being suspended until the temporary plates have been returned. The Japanese Land Transportation Office (LTO) determines term of validity for the temporary plates. Temporary license plates are for registration or inspection purposes only and are only to be used to move the vehicle between the applicant's residence, JSVRO, a maintenance/repair facility, and/or the LTO. Any other movement of the vehicle is grounds for removal of temporary license plates by Security Forces personnel and impoundment of the vehicle. Security Forces or other military police agencies may remove temporary plates and impound vehicles parked in unauthorized areas. JSVRO will provide a Rental of Temporary License Plates Statement of Responsibility memorandum that the applicant will sign and date, and any further guidance.

3.2.4. Personnel requesting temporary license plates will complete an application at JSVRO. Once the application is complete, a payment (Yen only) will be made to the Automobile License Plate Association (ALPA) section at JSVRO. The temporary plates can be picked up the next duty day at 0900.

3.2.5. Permanent Registration.

3.2.5.1. Vehicle registration is processed through JSVRO. Before registration may be completed, owners must provide the following:

3.2.5.1.1. Proper military or civilian identification showing affiliation with U.S. Forces in Japan. A copy of the sponsor's orders, Letter of Employment, or Letter of Invitation will be provided by first time registrants. All motor vehicles must be registered to the SOFA sponsor. In cases of dual sponsorship, vehicles will be registered separately. Motor vehicles will not be registered to family members who are "self- sponsored." In case the sponsor is both SOFA status civilian and a military retiree, then all vehicles will be registered as SOFA status except as allowed in MCIPAC-MCBBO 11240.1, Chapter 3, paragraph 8.

3.2.5.1.2. Proof of current insurance (both JCI and PDI), and annual Government of Japan Road Tax receipt.

3.2.5.1.3. Valid operator's permit (USFJ Form 4EJ) for the specific type of vehicle being registered. A valid U.S. State license, Japanese license, or International Driver Permit recognized by Japan. SOFA Article I (b) contractors, and retirees.

3.2.5.1.4. Proof of completed registration of the vehicle with GOJ authorities (Japanese Vehicle Registration Card).

3.2.5.1.5. Legal title to the vehicle or other appropriate authority authorizing possession or custody of the vehicle. Proof will include a Bill of Sale, Certificate of Title, Certificate of Ownership, or other U.S. requirements for registration of the vehicle in the name of the registrant.

3.2.5.2. JSVRO will:

3.2.5.2.1. Determine proof of ownership acceptability and adequacy of insurance coverage by examination of ownership documents and insurance policies.

3.2.5.2.2. Prepare and issue the Military Registration and Certificate of Title of Motor Vehicle.

3.2.5.2.3. Provide the registrant with USFJ Form 15A or B, Vehicle Registration Decals and other decals as required by rank and/or circumstance. The issuance of this form will be based upon having the correct documents as listed above.

3.2.6. U.S. Forces personnel must present privately owned vehicles, cars, trucks, motorcycles, and trailers, to which they have title, possession, or custody to GOJ authorities for inspection, registration, and to obtain GOJ license plates prior to operating them on any roadway. If a vehicle cannot be registered and issued license plates through GOJ, the vehicle is not authorized on roadways or KAB. Gas or Electric powered go-carts, mini-bikes, dirt bikes, etc. are not authorized on any KAB related property unless properly registered with JSVRO. **EXCEPTION:** Mission essential motorized vehicles owned and operated by the Air Force, U.S., or Japanese Governments.

3.2.7. Motor Vehicles not bearing SOFA registration as provided in MCIPAC-MCBBO 11240.1 will not be serviced at gasoline, petroleum, oil, or lubricant service stations, outlets, or garages on installations operated by or for United States Forces. Only exceptions are for operation of authorized rental vehicles and vehicles loaned or leased, and to resident, retired U.S. military personnel for operation of POV(s), which are registered for private use. To qualify for the exception(s), SOFA personnel and military retirees must present valid identification and current base registration issued by JSVRO. Motor vehicles registered to U.S. Embassy or United Nations personnel are authorized this privilege with possession and presentation of identification.

3.2.8. POVs of U.S. Forces personnel, civilians, or their command-sponsored dependents will not be granted routine access to U.S. Forces facilities and areas unless the vehicles have been registered IAW USFJI 31-205, MCIPAC-MCBBO 11240.1, and this instruction. This includes receiving temporary vehicle passes in an effort to avoid registration requirements when the registered owner has been granted SOFA status.

3.2.9. Official Vehicles (OV). The 18 MSG/CD is authorized to approve government agencies use of OV plates for mission related activities. These vehicles will not be operated for personal use or benefit of the operator or passenger. The motor vehicles are to be used only for the regular business of the activity. The only exception to this is non-appropriated fund vehicles as determined by the Non-Appropriated Fund (NAF) Accounting Office. The following organizations currently operate vehicles with OV plates and are considered to be publicly owned motor vehicles: Non-Appropriated Fund Activities, Japan and Okinawa Area Exchanges, Navy, Army and Air Force Exchanges, clubs and organizations, which are an instrumentality of the U.S. Forces, and the Pacific Stars and Stripes. Other activities include that use OV plates, but are considered privately owned vehicles are as follows: American Red Cross, military banking facilities, credit unions, universities providing college-level off-duty education programs, and United Services Organization (USO) vehicles.

3.2.10. All motor vehicles bearing OV plates will provide evidence of an annual inspection. Privately owned vehicles as described in the above paragraph will provide evidence of valid insurance (JCI and PDI) and may be inspected at the JSVRO.

3.2.11. POVs assigned OV plates are required to have PDI.

3.2.12. Local and Third Country Nationals, who possess appropriate United States Government (USG) or GOJ licensing and are employed by the U.S. Government or by a SOFA Article I(b) contractor performing under a contract or subcontract for the benefit of U.S. military authorities, are authorized to operate "Y" plated vehicles on and off the installation in the performance of their official duties. Such authorization is limited only to driving in the performance of official duties and may not be extended further.

3.3. License Plates.

3.3.1. Personnel will comply with the provisions of USFJI 31-205.

3.3.1.1. When an authorized person registers a POV with a GOJ Registration Agency (e.g., vehicle purchased from a dealership), two Japanese number plates will accompany the vehicle. A license plate must be attached to the front and rear bumpers of the vehicle. Operation of a motor vehicle without either of its front or rear plate(s), with a broken seal on the rear plate, or with a legibly deficient number plate is prohibited. Plates will not be obscured or covered in any way, by any objects or covers attached to or over the vehicle’s plate or rear seal. Two-wheeled vehicles and trailers only require one rear license plate. When these plates have become illegible or difficult to read, new plates must be obtained, which includes neon-style internally lighted license plates issued by the LTO. However, any illumination device, including neon, that in the view of Security Forces personnel neutralizes an observer’s ability to read the license plate (too bright or causes color blending) must be immediately disabled and removed within 24 hours.

3.3.1.2. Retouching, repainting, or modifying license plates is strictly prohibited. License plates must be the originals assigned by GOJ Land Transportation Office and clearly visible, free of debris, mud, dirt, covers, without any bends or folds, and mounted horizontally (as not to avoid highway camera systems). After-market lighted license plate number cutouts are prohibited on KAB. AAFES New Car Sales vehicles must have an assigned OV plate when driven on the roadway. AAFES vehicles may also be test driven by customers who have SOFA status. Seals placed on the back license plate by GOJ Land Transportation Office personnel will not be removed or tampered with. Removal or tampering will result in the vehicle being impounded by Security Forces, military authorities, GOJ Police or JSVRO personnel. Vehicles parked on KAB missing the rear license plate are considered to be abandoned and will be treated as such IAW this instruction.

3.3.2. Shipment of a registered POV.

3.3.2.1. When a motor vehicle is to be removed from Japan, a request for the cancellation of registration must be filed with JSVRO. The certificate of inspection will also be surrendered to JSVRO. A copy of the cancellation request will be delivered with the vehicle. When departing Okinawa on Permanent Change of Station (PCS) orders, deregistration or other authorized disposition is mandatory (i.e. transfer of ownership, proof of disposal, lost or stolen with police report, etc.).

3.4. Registration Officials.

3.4.1. IAW USFJI 31-205 and MCIPAC-MCBBO 11240.1 and **paragraph 1.4** of this instruction, the Installation Commander recognizes JSVRO as the "Executive Agency" for all permanent/temporary vehicle registration requirements. Personnel will abide by AFI 31-218(I), USFJI 31-205, MCIPAC-MCBBO 11240.1, KAB Plan 31-101, and this instruction.

3.5. Specifications for USFJ Registration.

3.5.1. The JSVRO located on Camp Foster is the office of primary responsibility for the issuance of USFJ Form 15A and 15B. The decal serves as proof of motor vehicle registration for U.S. Forces personnel.

3.5.2. The aforementioned forms are controlled items and must be accounted for from issue to final disposition. Once issued, the motorist is responsible for the control and return of the form to the issuing authority. If the form is lost, stolen, or deemed to be unserviceable, the motorist will immediately report this to the issuing authority. If a crime is suspected, the motorist will immediately report the incident to law enforcement personnel.

3.5.3. The Installation Commander has determined retired military personnel in possession of installation access media and not on the debarment roster may obtain handicapped vehicle decals and other registration documents as approved and provided by JSRVO.

3.6. Termination or Denial of Registration.

3.6.1. IAW AFI 31-218(I), USFJI 31-205, MCIPAC-MCBBO 11240.1, KAB Plan 31-101, and this instruction, driving on KAB is a privilege granted by the Installation Commander. To exercise that privilege, vehicle operators must comply with all laws and instructions for registration requirements. All SOFA registered vehicle owners on Okinawa fall under the purview of JSVRO. MCIPAC-MCBBO 11240.1, or superseding instructions, are in effect and enforceable on KAB as it applies to registration, equipment, and impoundment requirements for all motor vehicles requiring registration through JSVRO.

3.6.1.1. Execution.

3.6.1.1.1. All active-duty personnel, DoD civilian employees and their dependents operating POVs/GMVs on the islands of Okinawa.

3.6.1.1.2. All other U.S. Forces Japan personnel operating a POV within the area of responsibility assigned to the Commanding General, Marine Corps Base, Camp Smedley D. Butler.

3.6.1.1.3. All Japanese national employees of U.S. Forces Japan and Residents of Japan (RoJ) personnel authorized to operate a POV on USFJ installations.

3.6.1.1.4. All U.S. Forces Japan personnel, Japanese national employees, and RoJ for the purpose of registration, inspection and equipment of both POV and those under control of U.S. Forces Japan.

Chapter 4

TRAFFIC PLANNING AND CODES

4.1. Traffic Planning. Japanese traffic and vehicle safety laws are strictly enforced on KAB. Additional traffic laws and penalties are listed in **Table 5.1** of this instruction.

4.1.1. The Traffic Safety Coordination Group (TSCG), organized by the 18th Civil Engineer Group (18 CEG), develops traffic circulation plans prior to base events and construction that would impact normal traffic flow to provide for the safest and most efficient use of primary and secondary roadways. The TSCG consults with highway engineering representatives from the Japanese community to ensure the installation plan is compatible with plans developed by the host nation and the surrounding local community.

4.1.1.1. Modifications or adjustments to the traffic flow program on KAB must be coordinated with the Defense Force Commander (DFC) or designee.

4.2. Installation Traffic Codes.

4.2.1. These provisions apply to all persons who operate properly registered motor vehicles (cars, trucks, motorcycles, etc.), bicycles (including non-motorized vehicles operated upon roadways), and all pedestrians on KAB or any area under the control and jurisdiction of the Installation Commander or as listed in USFJI 31-203, *Law Enforcement Procedures in Japan*, and USFJI 31-205. The goal of the installation traffic code is to outline the rules of the road for vehicle operators. The 18th Security Forces Squadron performs the missions of directing, controlling, and enforcing traffic laws and ensuring vehicles, materials, and personnel flow safely and efficiently over roadways under Air Force control or KAB jurisdictional boundaries IAW established procedures and rules of the road. Personnel violating these codes or rules may be issued a DD Form 1408, *Armed Forces Traffic Ticket*, by Security Forces personnel or may be apprehended as authorized.

4.2.2. On-scene Security Forces directing traffic, or other personnel properly trained by Security Forces to include school crossing guards, have precedence over written regulations and traffic signs or signals. In the absence of Security Forces or other authorized personnel conducting traffic control, the traffic signs or signals of paragraphs **4.2.7** through **4.2.7.11** will apply.

4.2.3. Heavy, Oversized or Special Equipment.

4.2.3.1. Vehicle operators must observe all base speed limits. If heavy equipment (e.g., front-end loaders, cranes, forklifts, Military-Field Series) vehicles have lights and turn signals, they do not have to be escorted unless they are wider than one lane of traffic or interfere with the normal flow of traffic. The sponsoring agency will coordinate with Security Forces prior to movement to help determine the best route of travel and time to conduct the move. The sponsoring agency or equipment operators will provide personnel necessary to facilitate safe movement and traffic control.

4.2.4. Golf Cart/Utility Type Vehicles/Equipment.

4.2.4.1. The use of golf carts and 3 or 4-wheeled maintenance vehicles (utility type) is normally restricted to non-roadway areas. This is because they are relatively slow and difficult for motorists to see. These vehicles are currently authorized on the flight line, golf courses, Civil Engineer (CE) shop areas, 18th Force Support Squadron (18 FSS) recreational areas, and other similar locations. Should organizations have a requirement to operate these vehicles on open roadways, they must submit a request to 18 WG/SE with justification unless used in conjunction with base sponsored events (e.g. America Fest, Okinawa Marathon, etc.). **EXCEPTION:** Security Forces may use these types of vehicles in the performance of official duties. **NOTE:** These motorized vehicles are classified as equipment; therefore, damages associated with accidents, mishaps and incidents do not warrant traditional Security Forces traffic accident investigation, but may warrant a Report of Survey Department of Defense Financial Management Regulation (DoDFMR) 7000.14-R_Volume 12, *Special Accounts, Funds, and Programs*, by owner/user organizations.

4.2.5. Vehicle operators will maintain positive control of their vehicles at all times, ensuring the safety of lives and property, on or near roadways. When other factors such as weather, heavy traffic, accidents, or road conditions require a slower speed limit, vehicle operators are required to travel at a safe speed consistent with the hazard, regardless of the posted speed limit. Vehicle operators are expected to devote their complete attention to driving the vehicle safely and will abide by traffic rules as follows:

4.2.5.1. Vehicles will be operated only in the left lane (traveling lane or lane #1) of the roadway except when overtaking, passing in a passing zone, on a multi-lane roadway or when the left half of the roadway is under construction or when unobstructed and safe movement in the right lane is possible.

4.2.5.2. Maintain a safe distance between vehicles while traveling upon the roadway to ensure adequate braking distance as specified below:

4.2.5.2.1. Vehicle operators will maintain 10 feet of distance for every 10 kilometers per hour (KPH) (e.g., a vehicle traveling at 60 KPH will maintain a safe distance of at least 60 feet or at least three car lengths from the vehicle in front).

4.2.5.3. Left turns will be made from as near to the left side of the roadway as possible.

4.2.5.4. Yield right-of-way to bicyclists traveling to the far-left lane adjacent to the curb, when vehicles are turning left.

4.2.5.5. Make appropriate hand-and-arm or mechanical turn signals for at least 100 feet before making a turn off a roadway.

4.2.5.6. Make certain a safe route of travel exists before entering the flow of traffic from a stopped position.

4.2.5.7. Yield right-of-way to vehicles traveling on a primary or main roadway, or a clearly larger roadway, when entering from an unmarked intersection, road, alley, or driveway.

4.2.5.8. Yield right-of-way to vehicles on the left at unmarked intersections. At four-way stops yield right-of-way to the first vehicle stopped. If it is unclear as to which vehicle stopped first, the vehicle to the left has the right of way. However, you may be courteous and use prudent judgment to motion the other driver to proceed. If you follow this course, it is imperative you ensure all vehicle operators acknowledge the hand signal to proceed prior to moving.

4.2.5.9. Obey all temporary road construction signs/flagmen. Temporary construction traffic signs (i.e. directional, speed, stop, etc.) have precedence over permanent posted signs.

4.2.5.10. Do not operate a vehicle on any surface not designed for vehicle use. There is no authorized on-base area to operate all-terrain vehicles, dirt bikes, mini-bikes, or dune buggies, which do not conform to the POV registration requirements. If the vehicle cannot be registered as a POV, it cannot be operated on KAB. **NOTE:** Mission essential GMVs or equipment are exempt from this requirement.

4.2.5.11. Do not break traction when starting a vehicle in motion.

4.2.5.12. Do not side-skid while either accelerating (acceleration scuff) or braking.

4.2.5.13. Do not participate in any kind of race or speed contest on roadways or any surface (e.g. drifting).

4.2.5.14. Do not proceed through "No Thoroughfare School Zones" at designated times and locations.

4.2.5.15. Do not back any vehicle with restricted rear vision, without a spotter. If a spotter is not available, the operator must dismount the vehicle to ensure there are no obstructions to the rear before backing by conducting a 360-degree walk around of their vehicle (in GMVs) and honk the horn before backing.

4.2.5.16. Do not alter, twist, remove, or interfere with the effective operation of any official traffic control device without lawful authority.

4.2.5.17. Vehicle operators must come to a complete stop when approaching a posted stop sign, red traffic signal, or entering any base gate unless directed otherwise by a posted sentry. If a gate sentry is busy (e.g., detaining someone, giving directions, or performing other official duties) vehicle operators will NOT proceed until their identification is verified and they are signaled to do so.

4.2.5.18. Yield right-of-way to pedestrians at all crosswalks; within or about to enter pedestrian crossings. Proceed only after pedestrians have completely cleared the crosswalk. Do not stop or park on a crosswalk.

4.2.5.19. At no time will vehicles (POVs or GMVs) be operated with any open alcoholic container inside the vehicle (does not include the trunk). Alcoholic beverages will not be transported in the passenger compartment of a vehicle after the original seal has been broken or removed for the first time. Likewise, operators and passengers will not consume alcoholic beverages in a vehicle. When an open container is observed, both the operator and passengers will be cited for this offense.

4.2.5.20. All vehicle operators and passengers must wear the manufacturer's primary restraint system (e.g., seat belts). Passengers may not ride in the bed of POV pick-up trucks. Passengers may ride in the bed of a GMV pick-up truck if it is mission-essential and no seating in the cab is available. The passengers must be seated flat on the bed (i.e. not riding on wheel wells or side rails), and the Commander approves a formal risk assessment IAW AFI 90-802, *Risk Management*. Passengers in the bed of GMV pick-up trucks will not sit on, adjacent to, lean against or with their back to the tailgate of the truck bed.

4.2.6. Security Forces patrols are authorized to prevent suspected intoxicated persons from gaining access to their vehicle based upon personal observations or observations reported to them by competent witnesses. Unless the person is operating or in actual physical control of their motor vehicle, the operator may be detained and turned over to their respective unit with no further action required by Security Forces unless other infractions occurred during the interaction. If the suspected intoxicated person resists this preventative measure, they may be apprehended for drunk and disorderly conduct.

4.2.7. Traffic Signals. Vehicle operators will obey all standard traffic signs and road markings and, will observe the following rules:

4.2.7.1. Left turn on red light. Come to a complete stop and yield right-of-way before turning. **NOTE:** Left turn on red is authorized on KAB and Air Force property only unless posted otherwise.

4.2.7.2. Red Light. All traffic must come to a complete stop and wait for the light to turn green prior to proceeding through the intersection, unless a left turn is permitted and can be safely executed.

4.2.7.3. Yellow Light. Use all due caution before proceeding and if possible stop before the light turns red. Entering the intersection during a yellow light without accelerating is permitted, however, if the driver accelerates to 'make the light', or the light changes to red before the vehicle enters the intersection, it is an infraction.

4.2.7.4. Green Light. Proceed through the intersection at a safe speed.

4.2.7.5. Green Arrow Light. Only traffic turning in the direction indicated may proceed.

4.2.7.6. Flashing Red Light. Come to a complete stop, ensure traffic is clear, and proceed cautiously across or into the roadway. Flashing red lights should be treated as a stop sign unless directed otherwise.

4.2.7.7. Flashing Yellow Light. Slow to a safe speed and yield right-of-way to traffic coming from the opposite direction.

4.2.7.8. Stop Sign (triangle shaped with either Kanji or English, or white painted diamond on the pavement.) Come to a complete stop and yield right-of-way before entering the intersection.

4.2.7.9. When approaching an intersection, or stop location, with a painted white stop bar, all vehicle operators must come to a complete stop at the stop bar before proceeding forward. If unable to see cross traffic from the stop bar, vehicles will slowly move forward after coming to a complete stop, and safely enter the chosen lane of travel.

4.2.7.10. Yield Sign (triangle shaped with either Kanji or English). Slow down to a safe speed and yield right-of-way. If necessary, stop for approaching vehicles which have the right-of-way.

4.2.7.11. Intersections with inoperative traffic lights are treated the same as 4-waystop intersections. Operators must yield to vehicles IAW paragraphs **4.2.5.8** and **4.2.5.9**.

4.2.7.12. Avoiding Traffic Control Device. Operators will not drive through parking lots or non-street areas, turn left on red where prohibited, or execute an illegal U-turn to circumvent traffic control devices.

4.2.8. Safety Standards. The minimum safety standards for vehicle operations on KAB roadways are:

4.2.8.1. All drivers and passengers on KAB will wear seat belts, or in the case of infants, be properly restrained. Seat belts must be installed and properly worn by all occupants whenever a vehicle is being operated. All children under 4 years of age regardless of weight or less than 50 pounds regardless of age are to be properly secured in an appropriate child restraint system. Children ages 4 through 7, weighing 50 pounds or more and less than 4 feet 9 inches are to be properly secured in a booster seat or other appropriate child restraint system. Children ages 8 and above and no less than 4 feet 9 inches in height will be properly secured in a vehicle utilizing a seat belt or booster seat. The child safety seat or booster seat is certified by the manufacturer to meet all applicable Federal performance standards or host nation requirements and installed IAW the manufacturer's instruction.

4.2.8.2. Headlights will be used from sunset to sunrise, when it rains, or whenever roadway conditions limit visibility to less than 500 feet. POVs may have a maximum of four (does not include fog lights) clear or white light-producing headlamps on the front of the vehicle. These headlamps must be clearly visible and free of debris, mud, and dirt. After-market covers, colored lenses, or colored light bulbs are prohibited.

4.2.8.3. Parking lights and/or fog lights will not be used in lieu of headlights. Fog lights will be used only in conjunction with low-beam headlights. Privately owned vehicles are limited to a maximum of two clear or white-light fog lamps (including cover). Rear brake lights and housings must be red and not covered by after-market covers. Additional lights or colors are prohibited. IAW MCIPAC-MCBBO 11240-1, in respect to the parking lamps provided at the front, the color of the light shall be white, light yellow, or amber and the color of all shall be the same. The outermost edge of the illuminating surface shall be within 400mm (150mm in the case of a trailer) from the outer-most part of the vehicle. The lights will be mounted symmetrically on the left and right at a height of two meters or less above the ground. The color of the light of a parking lamp provided at the rear will be red. Rear parking lamps shall be located at a height of two meters or less above the ground. Parking lamps provided on each side at the rear end shall be so mounted that the outermost edge of the illuminating surface of the outermost one is within 400mm from the outermost part of the vehicle, and the distance between the innermost edge of the illuminating surface of the left innermost one, and that of the right innermost one, is one quarter or more of the vehicle's width.

4.2.8.4. Turn off headlights and leave parking lights on when entering the installation gates or approaching manned entry control points (ECPs) after dark from a reasonably safe distance.

4.2.8.5. All motorized vehicle, skateboard, bicycle, and scooter operators will not wear headphones while utilizing any of the above listed. **Exceptions:** Government issued equipment required for mission accomplishment or microphone-and-ear speaker systems used by a motorcycle operator and passenger.

4.2.8.6. Only tow trucks or vehicles equipped with specially designed tow bars will tow vehicles.

4.2.8.7. Vehicles will not be operated with the doors opened, removed (unless manufactured to be removed, [e.g. Jeep Wrangler]), or with any type of obstruction impairing the operator's vision. **EXCEPTION:** GMVs with safety nets/straps on Military-Series Vehicles.

4.2.8.8. IAW AFI 91-207, restrict the number of people in GMVs to the designed seating capacity of available seat belts. This includes sedans, station wagons, buses, trucks, and cargo vans with passenger seats. This excludes buses not manufactured with seat belts. When exigent circumstances or contingency requirements exceed availability of such vehicles, Commanders, through the risk management decision-making process, will determine the appropriate mode of transportation or operating procedures for such existing vehicles. Persons transported in the bed of a GMV truck will follow the guidance listed in **paragraph 4.2.5.20**.

4.2.8.9. Passengers will not ride on special equipment or aircraft-towing vehicles unless sitting on a seat designed as a part of the vehicle equipment.

4.2.8.10. The number of personnel transported in a vehicle will not exceed the number which the vehicle was designed to carry with proper seatbelt restraints.

4.2.8.11. Vehicles will not be stopped to discharge passengers within an intersection, roadway, or other area not specifically designated for drop-off or parking.

4.2.8.12. Vehicles will not be left unattended at any time with the engine running or keys in the ignition. **EXCEPTION:** Emergency response or mission essential GMVs may be left running when required. Vehicles will be put in park or neutral, with the emergency brake set.

4.2.8.13. Military-Series Vehicles are not authorized in any housing area unless on official business that requires their presence or transit through a housing area. Other routes will be taken if possible.

4.2.8.14. Vehicle operators will not use mobile phones (including sending and receiving text messages), handheld electronic devices, watch television, or have other similar equipment which distracts the driver from devoting full attention to vehicle operations. DoDI 6055.04, *DoD Traffic Safety Program*, defines "Texting" or "Text Messaging" as reading from or entering data into any handheld or other electronic device, including for the purpose of Short Message Service (SMS) texting, e-mailing, instant messaging, obtaining navigational information, or engaging in any other form of electronic data retrieval or electronic data communication, to include adjusting music stations or play lists

on a handheld device. Global Positioning System (GPS) should be set-up prior to operating the vehicle and only viewed briefly as needed, but never touched. It is strongly recommended that the voice-directions setting be utilized for all GPS devices to avoid the need to view a console. The GPS console must be mounted as high on the dashboard as possible in order to ensure the driver does not have to take their eyes completely off the road to view it. **EXCEPTION:** Emergency response vehicle operators may use handheld electronic devices required to perform mission functions. **NOTE:** Hands free devices/ear pieces, for use with cellular phones is authorized.

4.2.9. Noise or music originating from within vehicles will not be heard from a distance greater than 30 feet from the vehicle when the windows are up or down. Noise or music will not impede the operator's or other driver's ability to hear emergency vehicles approaching or distract other operators' full attention from operation of their vehicles.

4.2.10. Vehicle operators will yield the right of way (pull safely to the shoulder of the road) to all emergency vehicles when such vehicles are responding to an emergency and are utilizing their emergency lights and/or siren. Operators will not follow within 500 feet of any emergency vehicle. **NOTE:** The following are classified as emergency vehicles on KAB: marked Security Forces vehicles, Fire Department vehicles, ambulances, emergency maintenance vehicles with overhead light bars, Wing Commander, Group Commanders, and Wing Safety vehicles.

4.2.11. Vehicle Owner or Operator Responsibilities. Vehicle owners and/or operators are responsible for their vehicle at all times and will ensure the following:

4.2.11.1. Vehicle owners are solely responsible for ensuring only authorized and properly licensed personnel operate their vehicles, and will not lend or otherwise allow their vehicle to be operated by an unlicensed driver, drunk or impaired person. Doing so subjects them to possible loss of driving privileges.

4.2.11.2. IAW USFJI 31-205, U.S. Forces personnel will not rent, lend, or permit the use or operation of their POVs by persons other than those who possess a valid USFJ Form 4EJ. They also will not lend, rent, or authorize use under a power of attorney or otherwise give custody of their POVs to persons other than U.S. Forces personnel, except for the following reasons:

4.2.11.2.1. Being driven by the owner's authorized chauffeur to implement instructions received from the employer.

4.2.11.2.2. Undergoing maintenance, repair, or JCI Inspection.

4.2.11.2.3. Being shipped into or out of Japan.

4.2.11.2.4. Stored in a parking lot or garage.

4.2.11.2.5. Placed in temporary storage pending authorized disposition to a RoJ IAW USFJI 31-205 (Disposition of Personal Property in Japan).

4.2.11.2.6. Being driven by a properly licensed individual while the owner/operator is incapable of driving themselves (e.g., physically incapacitated, too tired, or consumed any alcohol). **NOTE:** Personnel not in possession of a USFJ Form 4EJ, or properly authorized by the Installation Commander, or designee, are not authorized to operate a SOFA status vehicle.

4.2.11.2.7. Being driven by a family member who possesses a valid GOJ operators permit or International Driver Permit recognized by Japan. **NOTE:** Personnel not in possession of a USFJ Form 4EJ, or properly authorized by the Installation Commander, or designee, are not authorized to operate a SOFA status vehicle.

4.2.11.2.8. Undergoing inspection and processing at a GOJ or Land Transportation Office (LTO) facility.

4.2.11.2.9. U.S. Forces personnel are authorized to rent or borrow a motor vehicle, including a Japanese-owned motor vehicle, after complying with all the following conditions:

4.2.11.2.9.1. Operators have a valid USFJ Form 4EJ or International Driving Permit for the type of motor vehicle to be operated.

4.2.11.2.9.2. Operators have the owner's written permission (other than a family member) in their immediate possession while operating the motor vehicle (only required when the owner is out of reach, e.g., TDY, leave, etc.). **NOTE:** Usage exceeding 24 hours will require coordination with 18 WG/JA for the issuance of a Power of Attorney.

4.2.11.2.9.3. The vehicle must be covered by insurance as prescribed in USFJI 31-205, paragraph 3.7.1. **NOTE:** TDY persons renting or operating a vehicle are not required to have commercial insurance if the vehicle is authorized on the member's orders. In this case, the vehicle is covered under the U.S. government's self-insurance policy.

4.2.11.2.10. Owners are responsible for all towing charges if performed by a civilian agency. Failure to pay tow charges may warrant pay garnishment until the amount of the debt is recovered. The vehicle will remain impounded until full payment is made.

4.2.11.3. Any SOFA member involved in a vehicle accident must report the accident to their unit First Sergeant within 24 hours. Sponsors will report accidents involving dependents. Organizations without a First Sergeant will report the accident to their supervisor.

4.2.11.3.1. SOFA members involved in a vehicle accident have three duty days to report the accident to their insurance company. Failure to report the accident within the require time may result in a suspension of driving privileges and/or action by your Unit Commander.

4.2.11.3.2. The 18 SFS Reports and Analysis office will not release accident reports directly to members involved. Per USFJI 31-205, the report will be provided to the insurance company upon request. SOFA personnel involved in an accident will exchange insurance information on-scene or in the presence of Security Forces. Accidents involving non SFOA personnel require the agreement of all parties before insurance information can be exchanged.

4.2.11.3.3. If a member is involved in an accident, and the other person is at fault, you may contact 18 SFS Reports and Analysis after 10 days has passed, if you have not received a phone call from the other member's insurance.

4.2.12. Defective, noncompliant, or illegally modified vehicles. It is unlawful for any person to drive or move, or for the owner to cause or knowingly permit to be driven or moved, on any roadway, any vehicle or combination of vehicles which is in such an unsafe condition as to endanger any person, or which does not contain those parts or is not at all times equipped with such lamps and other equipment in proper condition and adjustment, and to constitute an unsafe condition, or which is equipped in any manner in violation of this instruction or MCIPAC-MCBBO 11240.1. U.S. Forces personnel are prohibited from physically modifying or altering their vehicle in a manner which changes the original manufacturer's design (e.g., serial number, tires, suspension, steering wheel, timing, parking lamps, exhaust system, etc.) after completing the GOJ/JCI vehicle inspection.

4.2.12.1. Vehicle owners/operators with defective, noncompliant, or illegally modified vehicles will be issued a DD Form 1408, and instructed to correct the violation. Individuals will also be instructed to maintain a copy of the ticket with the vehicle until the correction is made, and will present the ticket to any Security Forces member if subsequently stopped for the same violation within five duty days. Security Forces personnel will not issue an additional ticket for the same vehicle defect if the operator presents a previous citation and is still within the five duty day window. Unit Commanders, Agency Chiefs, or First Sergeants are responsible for ensuring owners correct defective, noncompliant or illegally modified vehicles. If compliance is not achieved within five duty days, the vehicle must not be driven, or they will be subject to additional citations.

4.2.12.2. Any bumper sticker, decal, or other vehicle marking which is contrary to good order and discipline or otherwise violates the Uniform Code of Military Justice or other applicable directives and regulations is prohibited. Security Forces will handle issues dealing with this paragraph in the same manner as a traffic complaint. The complaint will be taken, a blotter entry made and the issue will be forwarded to the Unit Commander, Agency Chief, or First Sergeant.

4.2.12.3. Vehicle windows will not have any tint on the windshield, driver, or passenger front door windows, unless it is factory tint. Vehicle windows must be clear and free of debris, mud, and dirt.

4.2.12.4. Vehicle rear windows, passenger back door windows may be tinted or darkened to zero percent.

4.2.12.5. Vehicles that have four doors may tint the windows on the back doors. For vehicles without four doors, the rear quarter panel windows may be tinted.

4.2.12.6. Vans may tint all windows except for the windshield, driver, and passenger front door windows.

4.2.12.7. Defective vehicles will not be operated with obvious safety defects (e.g., missing fenders, bumpers, bald tires, inoperative head lights, broken seat belts, cracked or shattered windows, defective transmission/brakes, etc.). It is the responsibility of the owner to correct and pass a routine safety inspection at all times. Vehicles not able to pass a routine inspection are subject to administrative hold or vehicle impoundment. Security Forces personnel may occasionally conduct vehicle safety inspections at base entry points or other locations on the installation as determined by the DFC.

4.2.12.8. Vehicles will not be operated with the windshield removed, shattered, or obstructed (i.e. stickers, decals, etc.). Off-road vehicles with flip-down windshields must have the windshield in the up position while operating on any paved roadway. Additionally, the vehicle operator's direct/assisted sight through the rear window will not be obstructed in any way. **EXCEPTION:** GOJ and associated decals required for vehicle registration.

4.2.12.9. A vehicle will not be operated with a loud muffler (e.g., louder than factory installed system), straight pipes, defective mufflers, or without a muffler. Mufflers, covers, or tail pipes may not extend out beyond the body of any privately owned vehicle.

4.2.12.10. Vehicles will not be operated on the roadways with tires that show defects, bald spots or when the tire tread is worn below 1/16 of an inch.

4.2.13. Inoperative Vehicles. In the event a vehicle becomes inoperative, the operator or owner will ensure:

4.2.13.1. The vehicle is moved off the roadway out of the flow of traffic.

4.2.13.2. The 4-way flashers and parking lights are turned on, if possible, as needed.

4.2.13.3. The hood of the vehicle is raised and displays an emergency warning reflective triangle or a like device to warn on-coming traffic of the hazard.

4.2.13.4. The Base Defense Operations Center (BDOC) is notified (634-2475/2476) of the vehicle location, type, and license plate number.

4.2.13.5. Vehicles illegally parked or blocking the flow of traffic will be immediately removed by the owner. Vehicles that are not moved are subject to immediate impoundment by Security Forces. Payment for the tow bill must be made prior to the vehicle being released from impound.

4.2.13.6. Inoperative or wrecked vehicles will not be left in parking lots, roadways or other areas. **EXCEPTION:** Repair facilities such as the Auto Hobby Shop or Army and Air Force Exchange Service (AAFES) when the repair will be made at the specified facility.

4.2.14. Pedestrian Traffic. All motor vehicle operators will be cognizant of regulations regarding pedestrian traffic and associated safety requirements. The following rules apply to pedestrians:

4.2.14.1. Joggers and walkers are considered to be pedestrians. Pedestrians share certain rights and duties as road users and are subject to certain traffic controls, signs, and devices, which must be complied with.

4.2.14.2. Except where designated to the contrary, yield the right-of-way to all motor vehicles and non-motor vehicle traffic.

4.2.14.3. Children will not play in streets or leave toys in the street, driveways, or on sidewalks.

4.2.14.4. Pedestrians have the right-of-way on all sidewalks.

4.2.14.5. When crosswalks are available, pedestrians will cross the roadway only at the crosswalk and only once they are certain vehicle operators have noticed their presence. At traffic light controlled intersections, pedestrians will only cross when shown the green walk symbol, or with the green traffic light of their direction of travel when no walk symbol exists.

4.2.14.6. Pedestrians crossing at unmarked (no cross walk) intersections with traffic lights will not interfere with the smooth flow of traffic. Pedestrians can be issued a citation in the event their unsafe attempt to cross a road without using a crosswalk causes or almost causes an accident. Refer to **Table 5.1**.

4.2.14.7. When no pedestrian crosswalk is available, yield to traffic and do not cross until traffic has passed or comes to a complete stop and the driver is aware of the pedestrian's intentions to cross the road. Pedestrians will not cross any unmarked roadway within 200 feet of a designated crosswalk. In such situations, pedestrians will utilize the marked crosswalk.

4.2.14.8. Do not leave the curb and assume the right-of-way over traffic when such traffic is so close it would create a potential hazard.

4.2.14.9. Pedestrians will yield right-of-way to vehicle traffic and when crossing the road will cross at a 90° angle (straight across) minimizing impact on the flow of traffic. Cross all roadways in the most expeditious and safe manner and do not linger in the roadways or in a designated crosswalk when crossing the street.

4.2.14.10. When sidewalks are not available, pedestrians will walk on the outermost edge of the road or shoulder facing the flow of traffic and in single file. Available sidewalks must always be used.

4.2.14.11. Pedestrians will not impede traffic through personal carelessness or with any type of obstruction.

4.2.14.12. Hitchhiking on base is prohibited except at authorized share-a-ride shelters.

4.2.14.13. Do not consume alcohol or carry open containers of alcohol while in public, except at special base-sponsored events where alcohol is sold and authorized by the 18th Wing Commander (18 WG/CC), according to AFI 34-219, *Alcoholic Beverage Program*. **NOTE:** KAB offers a wide variety of safe rides home and they should be taken advantage of for personal and public safety.

4.2.14.14. Pedestrians will yield to all responding emergency vehicles.

4.2.14.15. Joggers and runners exercising on the roadways will wear reflective material on their upper body from sunset to sunrise or during conditions of reduced visibility. The reflective material may be a reflective belt, reflective vest, or highly reflective clothing.

4.2.14.16. Joggers and runners will run on the outermost edge of the roadway and not interfere with the flow of traffic. Run facing on-coming traffic and remain off the road surface when possible. When a sidewalk is present, joggers and runners will use the sidewalk, but not interfere with pedestrian traffic.

4.2.14.17. Joggers and runners will not exercise in the jungle/wood line, i.e., areas with heavy vegetation.

4.2.14.18. At no time will pedestrians wear headphones, earphones, or other listening devices while walking or jogging upon any roadways or parking lots. Wearing of listening devices while jogging on sidewalks is permitted; however, they must be removed prior to crossing intersections.

4.2.14.19. Formations of more than four joggers running at the same pace will not use Douglas or Kuter Blvd's during peak traffic periods of 0630-0800 and 1500-1700, or during other periods of high-traffic density, excluding weekends and holidays. Road guards wearing reflective vests will be used to safely control traffic for events or formations when more than four individuals are involved unless otherwise posted.

4.2.14.20. When jogging in a military formation (typically four joggers line abreast by 20 joggers deep), the formation will be under the direct control of a designated formation Commander. Formation running is allowed in industrial areas only. Industrial areas are on the north side of Douglas Blvd past the intersection of McKennon Ave and FH Smith Drive. Additionally, jody calls, loud cadence, air/bull horns, and excessive noise are prohibited in or adjacent to any on/off base residential areas.

4.2.15. Motorcycle and All-Terrain Vehicle (ATV) Operations. Before riding a motorcycle on KAB, operators must familiarize themselves with the guidelines of AFI 31-218(I), USFJI 31-205, AFI 91-207, and this instruction. In addition, motorcycle riders must receive motorcycle oriented training that mirrors the initial 4-wheel vehicle training unless the rider is a Japanese National who has a current motorcycle license/endorsement. SOFA status personnel must complete an approved Motorcycle Safety Foundation (MSF) course prior to operating a motorcycle. MSF courses are offered through 18 WG/SE. Motorcycle operators must possess a USFJ Form 4EJ indicating the size of motorcycle the operator is licensed to operate and if passengers are permitted.

4.2.15.1. Headlights. Regardless of the hour or visibility, headlights will be turned on at all times while motorcycles and ATVs (those equipped with headlights) are being operated.

4.2.15.2. Side View Mirrors. Motorcycles will have both left and right side view mirrors mounted on the handlebar and fairing (not required for tactical or off-road motorcycles not operated in a traffic environment).

4.2.15.3. Passengers. Passengers are not authorized on government owned motorcycles and ATVs unless they are specifically designed (as determined by the manufacturer) to carry a passenger and there is a valid operational need for the passenger to ride with the operator. The ability to carry passengers on privately owned motorcycles will be indicated on the individual's USFJ Form 4EJ.

4.2.15.4. Personal Protection Equipment. All personnel operating or riding a motorcycle on KAB and all SOFA personnel operating or riding a motorcycle off the installation will wear the appropriate Personal Protective Equipment (PPE).

4.2.15.4.1. Head Protection. A helmet designed to meet or exceed Department of Transportation (DOT) standards, shall be worn and properly fastened under the chin. Host nation equivalent is acceptable if it meets or exceeds the DOT standard. Commanders may authorize use of tactical helmets in appropriate off-road training or operating environments after completing an operational risk management (ORM) evaluation.

4.2.15.4.2. Eye Protection. Goggles, wrap-around glasses, or a full-face shield (properly attached to helmet) designed to meet or exceed American National Standards Institute (ANSI) Standard Z87.1 for impact and shatter resistance will be worn. A windshield does not constitute proper eye protection. Host nation equivalent is acceptable if it meets or exceeds ANSI Standard Z87.1 for impact and shatter resistance.

4.2.15.4.3. Protective Clothing. Wearing of long-sleeved shirt or jacket, long trousers, and full-fingered gloves is required. Gloves or mittens will be made from leather or other abrasion-resistant material. Wearing of a motorcycle jacket and pants constructed of abrasion resistant materials such as leather, Kevlar® and/or Cordura® containing impact absorbing padding is strongly encouraged. Riders should select PPE that incorporates fluorescent colors and retro-reflective material.

4.2.15.4.4. Foot Protection. Riders will wear sturdy over the ankle footwear that affords protection for the feet and ankles (durable athletic shoes that cover the ankles may be worn). Sandals, low quarter sneakers, and similar footwear will not be used.

4.2.15.4.5. All on-duty riders of motorcycles and ATVs during off-road operations should also wear knee, shin guards, and padded full-fingered gloves. Security patrol requirements may dictate limited compliance.

4.2.15.5. Motorcycles will not overtake and pass in the same lane occupied by the vehicle being passed. Otherwise follow the rules of the road for other motor vehicles.

4.2.15.6. Motorcycles are entitled to full use of the lane and will NOT be operated side by side, between lanes of traffic, or between adjacent lanes or rows of vehicles (i.e. driving between vehicles stopped at a traffic light.) No motor vehicle will be driven in such a manner as to deprive any motorcyclist of this entitlement. Additionally, motorcyclists will not drive on the unpaved shoulder of the road or to the left of single lanes of traffic.

4.2.15.7. A passenger may ride on the permanent and regular seat of a motorcycle or moped only when the vehicle is designed for two persons. The passenger must be at least 10 years old and his or her legs must be long enough so their feet can rest on the passenger's foot pegs.

4.2.15.8. All packages and bundles must be secured to the motorcycle, moped, or person in such a manner that it will not interfere with the proper and safe operation of the motorcycle.

4.2.15.9. Motorcycles will not be operated in a swerving fashion from within a single lane.

4.2.16. Non-Motorized Vehicles. **NOTE:** Motor vehicle operators will be cognizant of regulations regarding non-motorized vehicle traffic and associated safety requirements. Bicycle riders, skaters, roller skates, roller blades, skateboards, scooters, unicycles, or other manually operated wheeled vehicles, when utilizing roadways are subject to this instruction, AFI 91-207, and the following:

4.2.16.1. Bicycles operated on base roadways will be operated in a single file, with the flow of traffic, and as far to the left side of the roadway as safely possible. Bicyclists are considered part of the traffic when operating on roadways and must comply with the established rules of the road.

4.2.16.2. Bicycle operators, passengers, and those who operate skateboards, scooters, roller skates, roller blades, unicycles, and other manually-operated wheeled vehicles are required to properly wear (snapped/buckled/fastened IAW manufacturer's design) an approved safety helmet.

4.2.16.3. All persons who ride a bicycle on KAB roadways will wear a highly visible outer garment during the day and outer garment containing retro-reflective material at night. The rider must also have a front and rear light for visibility during the hours of darkness.

4.2.16.4. Passengers will not ride on bicycles unless it is equipped with a seat and footrests for each person.

4.2.16.5. Bicycle riders will not carry any article that prevents them from keeping at least one hand on the handlebars and in full control of the bicycle.

4.2.16.6. All bicycles must be equipped with at least one brake applied to the rear wheel.

4.2.16.7. Vehicles will not tow bicycle riders, skaters, roller skates, roller blades, skate boards, scooters, unicycles, or other manually-operated wheeled vehicles. Operators of these non-motorized vehicles will not cling to any moving motorized vehicle.

4.2.16.8. Bicyclists, scooters, skaters, or other non-motorized vehicles will not attempt or do tricks or stunts on base roadways, sidewalks, occupied parking lots, or public thoroughfares.

4.2.16.9. The owner, parent, and/or guardian is responsible for ensuring bicycles, scooters, roller blades, skateboards, and other non-motorized vehicles operated on base roadways are in safe condition and proper safety equipment is worn. Safety equipment for skaters must be IAW AFI 91-207, and this instruction. Wearing other protective equipment is highly encouraged.

4.2.16.10. Parents or guardians of bicycles, skaters, scooters, and other non-motorized vehicles are responsible for instructing dependents on rules of the roadway and general safety.

4.2.16.11. Bicyclists, scooters, skaters, or other non-motorized vehicles will NOT wear portable headphones, earphones, or other listening devices.

4.2.16.12. People on base using skates, roller skates, roller blades, skateboards, or non-motorized scooters may cross roadways and operate on roadways only when sidewalks are not available and must follow rules established for pedestrian traffic. Do not ride on a sidewalk if riding would cause other pedestrians to dodge or move out of the way. People using roller skates, roller blades, skateboards, or non-motorized scooters may use on-base roadways during daylight hours in housing areas when no vehicular traffic is present.

4.2.16.13. Skaters may use large parking lots during low-use periods, or when businesses are unoccupied, but will not use on base roadways or parking lots during the hours of darkness. The use of sidewalks during the hours of darkness is permitted as long as it does not endanger pedestrian traffic and the individuals wear highly reflective clothing or a reflective vest.

4.2.16.14. Each operator of a non-motorized vehicle upon the roadway must be knowledgeable of all traffic control devices and signs. A claim of ignorance that results in an accident is not a defense.

4.2.16.15. Skates, roller skates, roller blades, skate boards, or non-motorized scooters will not be used on sidewalks and parking lots at any place of business during operating hours.

4.2.16.16. People using skates, roller skates, roller blades, skate boards, and non-motorized scooters will wear, as a minimum, the following safety gear:

4.2.16.16.1. Protective helmet equipped with an adjustable chin strap (chin strap must be properly fastened under the chin while wearing the helmet.)

4.2.16.16.2. Kneepads, elbow pads, full fingered gloves, and palm pads are recommended.

4.2.16.17. Operators of non-motorized vehicles found to be in violation of this instruction may be issued a DD Form 1408, by Security Forces or 18 WG/SE personnel. These tickets will not result in points for personnel 17 years of age or younger. However, these tickets will be processed to Unit Commanders for action. Upon receipt of a second citation in violation of **Section 4.2** of this instruction, regardless of period of time, the individual and sponsor will be referred to KDAP for a hearing. Personnel 18 years of age and older will have points assessed against their driving record and the ticket will be processed through routine channels to his or her Commander or sponsor's Commander for action, IAW this instruction.

4.3. Traffic Accident Investigations and Reports.

4.3.1. Any person who is involved in, witnesses, or first arrives at the scene of a motor vehicle accident will notify Security Forces. For serious accidents, immediately notify the BDOC via 911 or, for minor accidents, notify the BDOC at 634-2475 (Commercial: 098-961-2475). Individuals at an accident scene will also provide information requested by Security Forces and will remain on scene until released.

4.3.1.1. When requested by Security Forces, 18 LRS may tow disabled vehicles when the vehicle presents a roadway safety hazard. A Security Forces member will be present to witness the tow and 18 LRS will only tow the vehicle to a point where it does not pose a hazard. It is the owner's responsibility to ensure their vehicles are removed immediately or it may be impounded by Security Forces. During a major vehicle accident investigation, with disabling vehicle damage, Security Forces will cite the disabled vehicle for abandonment to ensure compliance with abandoned vehicle guidelines. If the vehicle is needed for investigative purposes, Security Forces will arrange the tow and impoundment.

4.3.1.2. Security Forces will respond to all traffic accidents off-base involving USFJ personnel. Japanese Police will be notified for all vehicle accidents involving local nationals on or off base; but their response for minor vehicle accidents on base is not required if they have higher priority calls. If a local national submits a medical certificate to the local police indicating injuries after it was handled as a minor accident with no injuries, the local police may make an advanced request to come on base for re-enactment of the accident to open the case as a Causing Injury While Operating a Vehicle (Professional Negligence) case. Security Forces will escort the Japanese Traffic Officer(s) and the person(s) involved to the accident scene and assist with their investigation.

4.3.2. The following are classified as minor and major accidents:

4.3.2.1. Minor Vehicle Accidents. Accidents with damage estimated at less than $10,000 and no injuries. Although minor vehicle accidents are classified as a reportable accident, they do not require a detailed investigation. Alleged injuries not reported at the accident scene, but subsequently treated or reported, will not change the classification of a minor vehicle accident to a major vehicle accident. Individuals reporting alleged injuries after the fact will be instructed to provide all medical documentation to their insurance companies or other agencies requesting the information. For minor vehicle accidents, if both parties agree to fix damages to their own vehicles, it is not necessary to report the accident to Security Forces. However, if one driver expects the other to pay for damages, Security Forces must be involved to conduct proper paperwork that will be required by the insurance companies. **NOTE:** Failing to report a vehicle accident immediately after can be considered a Hit and Run, Suspected DUI, Fleeing the Scene, or Uninsured Motorist/Drivers, and will be investigated as such until determined otherwise.

4.3.2.1.1. Security Forces will complete a Kadena AB Form 5EJ, *Minor Traffic Accident Information Sheet*. Minor vehicle traffic accidents are also recorded in the Security Forces blotter. Once the accident is recorded in the blotter, a copy will be routed to and maintained by the Reports and Analysis Office. If an insurance company adjuster requires a copy of the blotter entry on a minor vehicle accident, they may be provided one on an as-needed basis by the Reports and Analysis Office. Drivers do not get a copy of the accident report from Security Forces. They must report the accident to their insurance company within three duty days and the insurance company will request a copy of the report from Reports and Analysis. Personnel requesting a copy of their accident report from Security Forces will be turned away.

4.3.2.1.2. Functional Damage. Damage to a vehicle that renders it unsafe or impractical to operate safely is considered functional damage rendering the accident to be classified as a minor accident. This may include flat or damaged tires, fender bent over the tire, or any other limited damage which can be repaired on scene, causing the vehicle to be operationally safe when fixed. If the damage is so severe that major repair is needed before the vehicle can be operated safely again, it would be classified as having disabling damage and classified as a major accident.

4.3.2.2. Major Vehicle Accidents. Accidents consisting of disabling damage, injuries, death, or hard to explain (i.e. no correlation to the evidence on hand). Security Forces personnel will use the Air Force Justice Information System (AFJIS), to record major vehicle accidents. These reports should be completed within three duty days unless there are injuries involved or other extenuating circumstances.

4.3.3. The following agencies are authorized to access accident data: Commanders, Agency Chiefs, First Sergeants pertaining to unit personnel, 18 WG/SE, 18 WG/JA, and insurance agencies IAW AFI 31-120, *Security Forces Systems and Administration*.

4.3.3.1. Installation Commander waives assessing insurance agencies a fee IAW AFI 31-120.

4.3.3.2. All other requests for reports must be submitted via the Freedom of Information Act (FOIA) office.

4.3.4. When removing a wrecked or damaged vehicle from the roadway, any glass or other material, which has dropped from the vehicle, will be removed by the owner(s) or tow agency of the vehicle(s).

4.4. Parking. Parking on KAB is authorized only in areas specifically designated for parking. Authorized parking areas are designated through the use of two white lines separating the parking spaces. Emergency response vehicles (as defined in this instruction), when on official business, are always considered legally parked, with or without the two white line markings.

4.4.1. It is prohibited to:

4.4.1.1. Park in any area not designated by two white lines as a parking area.

4.4.1.2. Park on a sidewalk or in any place blocking a driveway, entrance, exit way, or legally parked vehicle.

4.4.1.3. Park in such a manner that blocks a traffic control device.

4.4.1.4. Park within 15 feet of an intersection.

4.4.1.5. Park within 20 feet of a fire hydrant, Fire Department connection, or sprinkler connection.

4.4.1.6. Park within 15 feet of a building except where specifically marked.

4.4.1.7. Park within 50 feet of a fire station driveway. This prohibition does not apply to clearly marked emergency vehicles.

4.4.1.8. Park on or within 15 feet of a crosswalk.

4.4.1.9. Park in such a way that blocks a dumpster or similar refuse collection container or building.

4.4.1.10. Park adjacent to roadway construction in such a manner that blocks traffic.

4.4.1.11. Double-park, that is, park in front of or the rear of any vehicle preventing free movement to exit. This violation also applies to a vehicle parked adjacent to another vehicle that is legally parked and the violating vehicle is not in a designated marked parking space. This also includes parking in an already occupied parking space just because your vehicle can fit (i.e. motorcycle already parked). However, two motorcycles can be parked in the same parking space as long as they both can safely enter/exit the parking spot.

4.4.1.12. Park against the flow of traffic. In areas where the flow of traffic is not clear (e.g. cul-de-sacs in housing), assume the flow of traffic is following the circle to the left. In cases where the flow of traffic is not clear, Security Forces will not cite unless the vehicle in question is inhibiting traffic in some way.

4.4.1.13. Park on seeded, grassed, or unpaved areas not designated for parking (includes housing).

4.4.1.14. Park at any reserved parking space that is officially designated for another.

4.4.1.15. Park beyond the designated time limits in designated time limit parking areas.

4.4.1.16. Park beyond 72 hours in public parking lots other than designated long term parking areas. **NOTE:** The authorized long term parking area is across from the Air Mobility Command (AMC) Terminal.

4.4.1.17. Park in any marked fire lane. The entire driveway of tower buildings is considered a fire lane. No vehicle, other than emergency response vehicles or personnel actively loading or unloading vehicles, may be left unattended at any time in these areas.

4.4.1.18. Park in slots designated for the handicapped without a handicap decal displayed on or in the vehicle.

4.4.1.19. Park within 30 feet of a bus stop.

4.4.1.20. Leave a parked vehicle unattended with the engine running. Unattended means the operator is no longer in physical control of the vehicle. **EXCEPTION:** Emergency or mission essential government vehicles on official business.

4.4.1.21. Park in areas designated for childcare drop-off or pickup unless performing that function.

4.4.1.22. Where parallel parking is authorized, park vehicles parallel no more than 12 inches from the left curb. Where there is no curb, drivers must park vehicles as far left as the hard surface permits. Angular parking is authorized only where painted lines indicate this style of parking. Vehicles will not be backed into an angular parking slot.

4.4.1.23. In areas where spaces are provided for two-wheel vehicle parking, operators of these vehicles should use these designated parking spots first.

4.4.1.24. Parking on the side of any road in base housing in an unmarked parking spot is prohibited when doing so does not leave at least a 12 feet driving lane for one way roads, and 20 feet of driving lane on two way roads. Emergency vehicles must be able to utilize the road unimpeded.

4.4.1.25. Parking on or along any round-a-bout is prohibited unless two white lines allowing legal parking between two white lines is painted on the ground.

4.5. Reserved Parking. Reserved parking spaces are designated to meet essential mission requirements and will be held to an absolute minimum. Reserved parking is for unit personnel only if it is necessary to ensure that parking is available in the immediate area. This approach will make the limited parking spaces available to the base population. Reserved parking spaces are reserved 24 hours a day, with the exception of customer parking. Customer reserved parking spaces are reserved only during the operating hours of the facilities concerned. Reserved parking should not exceed 10 percent of the total parking spaces at each facility. **NOTE:** This rule does not apply to housing.

4.5.1. Reserved parking spaces are automatically authorized for the following personnel or vehicles:

4.5.1.1. 18 WG/CC, 18 WG/CV (Vice Commander) and 18 WG/CCC (Command Chief Master Sergeant).

4.5.1.2. Commanders.

4.5.1.3. Chief Master Sergeants and First Sergeants at their respective organizations.

4.5.1.4. General Officers.

4.5.1.5. Colonels at the Officers' Club and Chief Master Sergeants and First Sergeants at the Enlisted Club.

4.5.1.6. Government vehicles essential to carry out the unit's mission.

4.5.1.7. Customer parking with specified time limits.

4.5.1.8. Handicapped parking.

4.5.1.9. Wing quarterly award winners and visiting dignitaries or very important people (VIPs).

4.5.1.10. Reserved parking spots at the Risner Fitness Center, BX, and Commissary parking lots will only be reserved for "expectant mothers" and "handicapped" personnel.

4.5.2. Those desiring "Special Event" parking (e.g. America Fest type functions), will coordinate their actions/requests in writing with the Security Forces Police Services office for approval by 18 MSG/CD.

4.5.3. Requestors will be responsible for coordination, procurement, set-up, and tear down of temporary parking. **NOTE:** The 18 SFS/CC may provide an advisor, when requested, and if manpower allows.

4.5.4. Requests for reserved parking will be prepared on AF Form 332, *Base Civil Engineer Work Request*, and submitted to 18th Civil Engineer Squadron (18 CES) customer service with a location map attached. Reserved parking for personnel not listed above shall be requested by the Unit Commander and will be reviewed by the traffic-working group for approval. Approved requests will be forwarded to 18 CES, who is responsible for making, installing, and maintaining all reserved parking space markings. The Civil Engineer 18 CES/CEOER is responsible for coordinating approval of changes to reserved parking designation. The designation of parking by individual name is prohibited.

4.5.5. Parking Warden Program. Unit Commanders whom own facilities with known parking issues may designate building managers in writing as "Parking Wardens." All parking wardens must complete training provided by the 18 SFS/S3 before issuing any parking tickets. Upon successful completion of training, those designated will be authorized to issue DD Forms 1408 only to illegally parked vehicles and only at their assigned facilities. Parking Wardens will not have an extensive record of poor behavior (determined by the Unit Commander) or an extensive record of moving/parking violations (determined by 18 SFS/S5). Unit Commanders will ensure at least the building custodian and alternate are trained to ensure an effective parking warden program exists for their squadron. The main difference between a DD Form 1408 issued by a Security Forces member and one by a parking warden is the special instructions on the back of the pink copy that instructs the violator to contact the warden who issued the ticket instead of Security Forces. Wardens will provide contact information on parking tickets to enable violators to provide information necessary to complete the citation. Parking wardens will return the white and yellow copy of the issued ticket to the BDOC at Building 705 within five duty days of being written.

4.6. Blood Alcohol Concentration Standards.

4.6.1. Under Japanese law, vehicle operators are considered "Professional Drivers." This holds vehicle operators to a negligence-driving standard. Negligent driving may be considered criminal conduct under Japanese law.

4.6.2. If stopped off base by the Japanese Police while operating a motor vehicle for any reason, and signs of intoxication are observed or an odor of an alcoholic beverage is emitting from the vehicle operator, the individual and all passengers can be charged with alcohol related offenses under Japanese law. For on-base operations or areas under USFJ law enforcement jurisdiction, military personnel are strictly prohibited from riding as a passenger in a motor vehicle when they know, or reasonably should know, the operator has consumed alcohol or is intoxicated. If a vehicle is stopped and the operator exhibits signs of intoxication or emits an odor of an alcoholic beverage, all passengers are in direct violation of this regulation and are subject to punitive action under Article 92, UCMJ, as well as adverse administrative action (e.g., Letter of Reprimand).

4.6.3. The prescribed evidentiary test for KAB drinking and driving violations (**Table 4.1** describes DUI) will be devices that are on the approved National Highway Traffic Safety Administration (NHTSA) Conforming Products List of Evidential Breath Measurement Devices. BAC or urine (urinalysis) tests can be administered as secondary test options when approved equipment is unavailable.

4.6.3.1. Incidents involving drinking and driving where alcohol is detected and pre-exit tests and/or Standardized Field Sobriety Testing (SFST) reveals a lack of indicators for DUI/Intoxicated Driving; Security Forces may request the operator to consent to a breath sample using a Preliminary Breath Test (PBT) (e.g. AlcoBlo) from the NHTSA Conforming Products List of Alcohol Screening Devices for use as additional probable cause. The final evidentiary test will remain as stated in **paragraph 4.6.3**. Refusal to submit to one of the aforementioned tests (breath, blood, or urine) is considered refusal of the implied consent rule. Vehicle operators refusing to consent to a test of their blood alcohol content by one of the previously listed methods will have their driver's license immediately confiscated IAW **paragraph 2.5**.

4.6.3.2. All SFSTs will be recorded on the DD Form 1920, *Alcohol Incident Report*, and/or Kadena AB Form 6, *Alcohol Influence Report/Standardized Field Sobriety Tests*. These forms will be used to document results from the Horizontal Gaze Nystagmus (HGN) test, walk and turn test, and the one leg stand test.

Table 4.1. BrAC Action Chart.

Released on Scene		0.00% to 0.029% BrAC
Disobey Order or Regulation	Article 92, UCMJ	0.03% to 0.079% BrAC
Driving Under the Influence	DUI	0.08% BrAC and higher

Notes:

1. Personnel of legal drinking age with Intox reading of 0.00% through 0.029% will be released on-scene. No further actions will be taken.

2. Personnel of legal drinking age with Intox reading between 0.03% and 0.079% are considered in violation of Article 92, UCMJ.

3. Personnel of legal drinking age with Intox reading of 0.08% and higher are considered DUI.

4. Under the Legal Drinking Age, Consumption While Driving equates to any detectable amount of alcohol in the underage person's system/possession.

5. Under the Legal Drinking Age; Purchase, Possession, Misrepresentation of Age, Consumption, Public Intoxication, and Public Intoxication equates to any detectable amount of alcohol in the underage person's system/possession.

6. Passengers who ride in a vehicle where the operator is found to be driving under the influence or in violation of Article 92 for alcohol consumption are in direct violation of this regulation and will be charged under Article 92, UCMJ, and will receive administrative action.

4.7. Overtaking and Passing.

4.7.1. Passing on the Left. Drivers may overtake and pass on the left of another vehicle only under the following conditions:

4.7.1.1. When the vehicle being overtaken is about to make a right turn, it is clear to do so safely, and there is sufficient room to clear the vehicle being overtaken without leaving the paved roadway.

4.7.1.2. Motorcyclists and bicyclists may pass on the left under the same conditions if it can be done safely and without leaving the paved roadway.

4.7.2. Passing is permissible on the right under the following conditions:

4.7.2.1. The oncoming lane is clear of traffic and the passing movement can be completed safely before coming within 500 feet of oncoming traffic. **NOTE:** Must be within a marked (dashed painted centerline) passing zone or the vehicle being passed is pulled over and stationary on the far left side of the roadway. Center roadway turn lanes will not be used for passing or as extra drive lanes to include entering the flow of traffic.

4.7.2.2. The movement can be completed before coming within 500 feet of any intersection, roadway, or drive way. **NOTE:** Must be within a marked (dashed painted centerline) passing zone or the vehicle being passed is pulled over and stationary on the far left side of the roadway.

4.7.3. Passing is not permissible when:

4.7.3.1. Within 500 feet of a curve or hill crest where the driver's view is limited and safe passing is not assured.

4.7.3.2. Coming within 500 feet of any bridge, culvert, tunnel, or crosswalk.

4.7.3.3. Following a police-escorted convoy.

4.7.3.4. Following vehicles marked "Explosives" or a convoy transporting explosives unless signaled to do so by the vehicle operator or escort. This includes areas marked with a broken passing line or marked with a passing sign.

4.7.3.5. Following slow moving vehicles within a school zone during school hours.

4.7.3.6. Where a solid yellow centerline is present.

4.7.3.7. On the left of traffic when doing so requires you to go outside the marked traffic lane or off the roadway.

4.7.3.8. A vehicle is stopped at a crosswalk yielding to pedestrians.

4.7.3.9. Behind any stopped school/shuttle bus that is loading/unloading passengers or displaying a stop signal unless signaled by the bus/shuttle driver to proceed.

4.7.3.10. Inside a designated school zone.

4.7.3.11. Following a slow-moving vehicle towing a trailer or machinery until the vehicle pulls to the side of the road and the operator signals to pass.

4.7.4. Driving on Roadways. Roads on KAB consist of one or more lanes including turn lanes. The following rules apply:

4.7.4.1. On 1-lane roadways, travel in the direction indicated consistent with the flow of traffic, traffic signs, or roadway markings (arrows) to include parking lots.

4.7.4.2. On 2-lane roadways, travel in the left lane except when making an authorized passing movement or turn.

4.7.4.3. On 3-lane roadways where two lanes are moving in the same direction, do not drive in the center turning lane more than 100 feet and only when:

4.7.4.3.1. Intending to execute a right turn at a given point along the roadway.

4.7.4.3.2. Directed by a traffic controller or traffic signs indicating otherwise.

4.7.4.4. Right of Way. Yield to specific vehicles under the following circumstances:

4.7.4.4.1. At all yield signs when obliged to stop or yield to other traffic having the right-of-way.

4.7.4.4.2. To all emergency vehicles responding to an emergency. Pull immediately to the left side of the roadway, safely out of the way and if necessary come to a complete stop in a position not to interfere or block responding vehicles.

4.7.4.4.3. To all pedestrian traffic crossing a roadway at a marked crosswalk.

4.7.4.4.4. To all troop movements and military convoys or vehicles engaged in road construction that display appropriate warning signs or flashing lights.

4.7.4.5. Do not pass buses when red or yellow lights are flashing. This includes all passenger and school buses when loading or off-loading. Vehicles approaching any bus under these circumstances from any direction must come to a complete stop no closer than 20 feet from the bus and not proceed until the lights have been turned off or the driver signals for vehicles to move.

4.8. Turning, Stopping, and Signals When Stopping and Turning.

4.8.1. The operator of a motor vehicle will:

4.8.1.1. Left Turn. Make the approach for the left turn and the execution of the turn as close as possible to the left-side curb or edge of the roadway. Left turns at red traffic lights are authorized ONLY ON KADENA AB. Once a vehicle comes to a complete and full stop, the driver ensures the lane of traffic is clear and there is no sign prohibiting a turn on red.

4.8.1.2. Right Turn. Approach the turn in the right-side lane or as close to the centerline as possible. Initiate the turn when clear to do so, and leave the exiting roadway to enter the lane adjacent to the centerline (right lane). Do not cross into the oncoming lane or impede the traffic therein.

4.8.1.3. U-Turns. U-turns are prohibited on KAB unless posted with a sign specifically allowing a U-turn. **EXCEPTION:** Emergency response vehicles performing official duties.

4.8.1.4. Turning Movements and Required Signals. If intending to make a left or right turn, continuously signal the intention at least 100 feet before executing the turn.

4.8.2. Use hand and arm signals while operating a bicycle or motor vehicle that is not equipped by the manufacturer with turn signal devices.

4.8.3. There are special occasions when vehicle operators are required to yield and stop, often without warning. The most common occurs when retreat sounds. All vehicle operators will: immediately and safely come to a complete stop; pull to the left shoulder of the road or where stopped and remain stopped; when the first note of the Japanese/American National Anthem starts, turn on emergency flashers and do not continue to drive. Proceed safely only after the completion of the last note of the U.S. National Anthem.

4.9. Speed Limits.

4.9.1. Speed restrictions on KAB are identified in **Table 4.2**, unless otherwise posted:

Table 4.2. Speed Restrictions on KAB.

CONDITIONS	MPH	KPH
On all roadways, except when posted otherwise	25	40
In all residential or housing areas, except when posted otherwise	25	40
In all parking lots, alleyways or locations not specifically designed as roadways	9	15
When passing troop movements, when passing troops in congested areas (e.g., troop formation is on the roadway), the troop Commander will use hand or verbal signals before motorists may overtake or pass the formation. Vehicle operators are responsible for getting the troop Commanders attention when having to go outside their respective lane of traffic. Troop Commanders or leaders are responsible for providing clearly visible road guards. Troop formations do not have the right-of-way at traffic intersections with traffic lights. Formations must abide by traffic lights. Troop formations will not use primary roadways (e.g. Douglas Ave/Kuter Blvd.) without coordination through 18 WG/SE and 18 SFS, with approval from the 18 MSG/CD. **NOTE:** KAB is used by all services for road marches and group runs. These are done at all hours of the day. Troop fatigue can be expected so vehicle operators must exercise caution when approaching, passing, or overtaking these formations.	16	25
In all school zones, during school hours, when yellow lights are flashing, regardless if children are present or not	16	25
When moving in reverse or backing up	6	10
While backing a motor vehicle within 10 feet of a building	3	5
When towing vehicles, trailers, and other authorized cargo (must be towed using approved towing vehicles and equipment)	19	30
When driving near road construction or wherever traffic cones, construction barricades, workers, or flagmen are present.	16	25
Flight Line (not covered by other instructions)	16	25
Recreational Areas (i.e. parks, campgrounds, etc.)	9	15
Designated physical training areas, marked with signs and runners are present	16	25
Housing Court Entrances. All housing area courts and roads leading into courts due to the number of children present in these areas.	9	15
When entering/exiting installation gates (Kadena)	3	5

4.9.1.1. Drive slower than the posted speed limit under the following situations:

4.9.1.1.1. Inclement weather or reduced visibility.

4.9.1.1.2. When approaching or following a military convoy or troop movement.

4.9.1.2. Do not operate a moped at a speed in excess of 40 KPH (25 MPH).

4.9.1.3. Off-base maximum speed for a moped or motorcycle (less than 50cc) IAW Japanese traffic law is 30 KPH (19 MPH).

4.9.1.4. Do not operate a motor vehicle when:

4.9.1.4.1. On a public or private roadway, at a speed less than 10 KPH, unless posted as such.

4.9.1.4.2. Doing so, at a slow rate of speed, would impede the safe, smooth movement of traffic or create a potential traffic hazard

4.9.1.5. Security Forces may control speed of vehicle traffic on the installation by means of Radio Detection and Ranging (RADAR) or Light Detection and Ranging (LIDAR).

4.9.2. IAW AFI 13-213 KADENAABSUP, *Airfield Driving,* authorized vehicles and speed restrictions on KAB flight line are as follows:

4.9.2.1. Authorized Vehicles.

4.9.2.1.1. Government motor vehicles in the performance of official duties.

4.9.2.1.2. Privately owned vehicles possessing a flight line POV pass in the performance of official duties.

4.9.2.1.3. Rental vehicles utilized by deployed personnel possessing a flight line POV pass in the performance of official duties.

4.9.2.1.4. Contractor vehicles possessing a flight line POV pass in the performance of contracted duties.

4.9.2.1.5. Unit owned bicycles can be used on the parking aprons in the performance of assigned duties provided the operator has an AF Form 483, *Certificate of Competency*. Bicycles will have a suitable braking device engaged when parked on the flight line. Night operation requires an operational headlamp, tail lamp, and reflectors or reflector tape. Unit owned bicycles used in flight line operations are counted as equipment and must be operated in a safe manner.

4.9.2.1.6. Golf-cart type or similar utility vehicles will follow all rules established for general and special purpose vehicles and will be equipped with forward and rear lamps if operated at night. The operator will have an AF Form 483.

4.9.3. Unauthorized Flight Line Vehicles.

4.9.3.1. Motorcycles.

4.9.3.2. Mopeds.

4.9.3.3. Two-wheeled scooters.

4.9.4. Speed Limits: No vehicle will be operated at a speed in excess of that deemed reasonable and prudent for existing traffic, road, and weather conditions, and will be done so IAW AFI 13-213 KADENAABSUP.

4.10. Movements of Loads Upon Roadways. Drivers who plan to move cargo upon the roadway must be aware of load capacities and other related requirements for the safe movement of cargo in or on their vehicle, and others present upon the roadway.

4.10.1. Move cargo on roadways in motorized vehicles only when following these rules:

4.10.1.1. Do not overload vehicles when moving cargo.

4.10.1.2. Do not carry cargo if it is not secured to the vehicle. **NOTE:** Drivers, who lose a load upon the roadway, may be issued a ticket for "Failure to Secure Load."

4.10.1.3. If a truck or trailer has no sides or tailgate, cargo must be securely strapped to the truck bed.

4.10.1.4. If mounted cargo is higher than the truck sides/railings or tailgate, cargo must be securely strapped to the truck bed.

4.10.1.5. Loaded cargo must not obstruct the driver's vision to the front or sides. Mirrors, visible to the driver, must be used to view both sides of the vehicle. If a vehicle is equipped with two side mirrors, obstruction of the rear view mirror is permissible as long as the load is secured.

4.10.1.6. If mounted cargo extends up to four feet beyond the rear of the vehicle length, display a highly visible/reflective flag or material from the end of the farthest extended object. The flag must be visible from a distance of at least 500 feet. If mounted cargo extends beyond four feet from the rear of the vehicle length, flashing lights visible from 500 feet must be attached from the end of the farthest extended object. Vehicles with cargo extending beyond the sides or front of the vehicle must display wide load signs, both in back and front, and have a warning beacon with a 360 degree view visible from 500 feet.

4.10.1.7. Trailers being towed by tugs will not be loaded so high as to prevent the tug operator from seeing the whole length of the trailer while in a seated position.

4.11. Towing of Vehicles.

4.11.1. Vehicles must be towed by a tow truck or using a commercially designed tow bar. Ropes, belts, chains, straps, or facsimile of these will not be used to include military emergency tow ropes. Vehicles in tow must have rear flashing lights working on the vehicle or attached to the rear of the vehicle unless being towed by a commercial tow truck.

4.12. Miscellaneous Roadway Operations. All operators must:

4.12.1. Ensure all operators and passengers of GMVs and POVs wear restraint systems on and off the installation at all times while the vehicle is in motion.

4.12.2. Not straddle the centerline of the roadway.

4.12.3. Only cross the centerline when executing an authorized pass or turning movement.

4.12.4. Do not use the sidewalk as a means of travel unless the area is designated as a temporary roadway.

4.12.5. Allow a passing vehicle to complete the pass and not impede its movement.

4.12.6. Not operate a vehicle if passengers are riding on top of cargo.

4.12.7. Ensure vehicles do not have:

4.12.7.1. Graffiti written or sprayed on. Body paint will be uniform in color(s) not to create a public eyesore.

4.12.7.2. Touch-up paint is authorized if it is in basic color and does not detract from the appearance of the vehicle.

4.12.7.3. Multi-colored vehicles are acceptable as long as there is an obvious attempt at uniformity as opposed to random coloring.

4.12.7.4. Vehicle owners will not paste or stick any items on the windshield, front driver side or passenger side windows except the following:

4.12.7.4.1. Permanent or temporary vehicle inspection stickers.

4.12.7.4.2. A periodic vehicle maintenance certificate.

4.12.7.4.3. Insurance sticker provided under the Automobile Damage Compensation Guarantee Law (JCI Sticker).

4.12.7.4.4. USFJ Form 15B, *Vehicle Registration Decal*. (For Use on 2-Wheel Vehicles.)

4.12.8. On-base major vehicle maintenance or bodywork for POVs will only be accomplished at the following facilities (except during emergencies when loss of life or limb is possible): Auto Hobby Shop and AAFES Garage. Major maintenance should not be performed on vehicles in parking lots, in housing parking spots, along roadways, or similar areas, unless the maintenance is needed to make the vehicle operational again (e.g. changing a flat tire), or considered minor in nature (e.g. windshield wiper blades, replace front/rear lightbulbs, etc.).

4.13. Emergency Response Vehicles.

4.13.1. Emergency vehicles must have operational audio and visual warning equipment installed.

4.13.2. When responding to emergencies using audio, visual, or both, emergency vehicles may:

4.13.2.1. Request the right of way only when it can be done without endangering personnel or property.

4.13.2.2. Proceed through stop signs or traffic lights only when it is safe to do so.

4.13.3. During emergency vehicle response modes, all non-emergency vehicles must:

4.13.3.1. Yield the right-of-way to all emergency-responding vehicles by pulling off the roadway as far left as possible to ensure a clear and safe passage for responding vehicles.

4.13.3.2. Not follow any emergency vehicle within 500 feet.

4.13.3.3. Not stop or park within 500 feet of the scene of a fire response when emergency vehicles are already on scene.

4.13.3.4. Not be driven over fire hoses stretched across the roadway at the scene of a fire response unless directed to do so by an on-scene traffic controller.

4.14. Unattended Children in Vehicles.

4.14.1. The following are the standards for the safety and welfare of children left unattended in vehicles:

4.14.1.1. Age of Child: Newborn to 6 Years of Age: Never left unattended in a vehicle.

4.14.1.1.1. Action: Automatic 3-month suspension of driving privileges.

4.14.1.2. Age of Child: 7 - 9 Years of Age: May be left unattended in a vehicle with the keys removed not to exceed 15 minutes. Windows must be "cracked" when necessary.

4.14.1.2.1. Action: Automatic 2-month suspension of driving privileges.

4.14.1.3. Age of Child: 10 - 11 Years of Age: May be left unattended in a vehicle with the keys removed. Windows must be "cracked" when necessary.

4.14.1.3.1. Action: Automatic 30-day suspension of driving privileges.

4.15. Vehicle Animal Safety.

4.15.1. At no time will pets sit on the vehicle operator's lap while motor vehicle is in motion. All pets will remain in front passenger seat or rear seats while in transit. The vehicle operator must be able to control animals located in their vehicle through physical or verbal means at all times.

4.15.2. Animals will not be left unattended in vehicles for a period of time where the safety, health or well-being appears to be in immediate danger or could lead to distress (i.e. heavy panting, dark red tongue, vomiting, or lethargy) from heat, cold, or lack of adequate ventilation and the conditions would be deemed hazardous by a reasonable person.

Chapter 5

DRIVING RECORDS AND THE TRAFFIC POINT SYSTEM

5.1. Driving Records. The Reports and Analysis Office oversees the maintenance of installation driving records and the integrity of the traffic point system. AFJIS is used to record vehicle traffic accidents, moving and parking violations, suspension or revocation actions, and traffic point assessments involving military and DoD civilian personnel, their family members, and other personnel operating motor vehicles on a military installation. Additionally, suspensions or revocation actions will be entered into DBIDS.

5.2. Traffic Point System. The traffic point system supplements AFI 31-218(I), and provides a uniform administrative process to impartially judge driving performance. This system is not a disciplinary measure or a substitute for punitive action and does not interfere with the Installation Commander or designee's prerogative to issue, suspend, revoke, deny, or reinstate installation driving privileges IAW AFI 31-218(I), and USFJI 31-205. Suspensions, Revocations, and Points are assessed for offenses on or off installation unless otherwise specified. **NOTE:** No points are assessed for revocation or suspension actions. **Table 5.1** is not all inclusive, but contains the most common traffic violations committed and cited for. It is used as a guide for violations and enforceable IAW this instruction.

Table 5.1. Suspension, Revocation and Point Reference Sheet of Violations.

DESCRIPTION OF VIOLATION Air Force Motor Vehicle Traffic Supervision	**POINTS**	**SUSPENSION, REVOCATION, OR IMPOUNDMENT**
Abandoned Vehicle (Once proof of ownership can be determined 3 points will be added to AFJIS driving records)	3	Vehicle Towed, Owner Pays Fees
Knowingly allowing a physically impaired person to operate a motor vehicle	N/A	6-Month Revocation
Allowing an unlicensed driver to operate a motor vehicle	N/A	3-Month Suspension
Allowing a non-SOFA member to drive a SOFA-plated vehicle	N/A	6-Month Revocation
Breaking Traction	3	N/A
Crosswalk: Vehicle Stopped/Parked	3	N/A
Crosswalk: Failed to yield/stop for pedestrians in designated walkway/crosswalk. **See Note 3**	3	N/A
Crosswalk: Hit pedestrian in crosswalk and found to be at fault	N/A	6-Month Revocation
Driver involved in an accident and deemed responsible	1	N/A
Driving a vehicle off base with an on-base license only	N/A	6-Month Revocation
Driving a vehicle off base with an on-base restricted license only	N/A	6-Month Revocation

Driving a vehicle with expired Road Tax	3	Impound Vehicle
Driving on Flight line without Flight line Driving Competency Card	3	N/A
Driving on a student driver permit without a licensed driver in the vehicle	N/A	6-Month Revocation
Driving POV on Flight line without proper pass	4	N/A
Driving Under a Suspension or Revocation: On/Off base	N/A	Add 2 Years to original offense
Driving under the influence of drugs	N/A	1-Year Revocation
Driving with expired Military/Base registration	3	Impound Vehicle
Driving with expired license (30 days or less), USFJ Form 4EJ	3	N/A
Driving with expired license over 30 days (USFJ Form 4EJ)	N/A	3-Month Suspension
Driving without a license being issued (USFJ Form 4EJ)	N/A	1-Year Revocation
Driving without a license on person	1	N/A
Driving without a current road tax sticker displayed on vehicle (*Unless removed by service due to limited driving)	3	N/A
Driving with expired JCI or PDI less than 30 days	3	Impound Vehicle
Driving with expired JCI or PDI 30 days or more, but less than 6 months	6	Impound Vehicle
Driving with expired JCI or PDI for 6 months or more	N/A	6-Month Revocation and Impound Vehicle
Driving/Crossing Right of Center Line (includes using center turn lane to drive more than 100 yards, overtake another vehicle, or to enter the flow of traffic)	3	N/A
DUI - Driving Under the Influence (0.03% - 0.079% BrAC)	N/A	1-Year Revocation
DUI – Driving Under the Influence (0.08% BrAC or higher)	N/A	3-Year Revocation
PASSENGER in a vehicle when the driver is DUI or Intoxicated Driving (*evidence must show passenger was aware or should have reasonably been aware driver was under the influence)	N/A	Equal to Driver Penalty
Under Legal Drinking Age, Consumption While Driving (any detectable amount of alcohol in the underage person's system/possession)	N/A	1-Year Revocation
PASSENGER in a vehicle when the driver is Under Legal Drinking Age, Consumption While Driving (any detectable amount of alcohol in the underage person's system/possession [*evidence must show passenger was aware or should have reasonably been aware driver was underage and had consumed alcohol])	N/A	6-Month Revocation
Expired GOJ inspection	3	Impound Vehicle

Exhibition of Speed **See Note 5**	N/A	30-Day Suspension
Failure to Display License Plate, clearly display, free of obstruction	3	N/A
Failure to Obey Traffic Signal/Sign or Device or traffic instructions of an enforcement officer/warden	3	N/A
Failure to Stop for School Bus or Crossing Signal (**1st offense**)	4	N/A
Failure to Stop for School Bus/Crossing Signal (**2nd offense within any amount of time**)	N/A	30-Day Suspension
Failure to Secure Load	4	N/A
Failure to Secure Load Causing Accident or Injury	N/A	30-Day Suspension
Failure to Utilize Seat Belt Properly (**1st offense**)	3	N/A
Failure to Utilize Seat Belt Properly (**2nd offense within any amount of time**)	N/A	30-Day Suspension
Failure to utilize proper seatbelt restraint for child. (**1st offense**) **See Note 1**	4	N/A
Failure to utilize proper seatbelt restraint for child. (**2nd offense**) **See Note 1**	N/A	3-Month Suspension
Failure of operator to ensure occupants use available restraint system devices (Seatbelt) while moving (operator assessed points) **See Note 1**	2	N/A
Failure to Yield Right of Way	3	N/A
Failure to Yield Right of Way to Emergency Vehicle	N/A	30-Day Suspension
Failure to Yield (no official sign)	3	N/A
Failing to Submit to a Random Installation Entry/Exit Point Check	N/A	1-Year Revocation & Denied Entry
Failing to Dim Headlights Upon Entering a Base Entry Point	3	N/A
Failure to use headlights during inclement weather (e.g., raining) or hours of darkness (between sunset and sunrise)	3	N/A
Fleeing the Scene of Accident	N/A	**See Note 8**
Attempting to Elude Police	N/A	2-Year Revocation
Following Too Close	4	N/A
Illegal left turn into Gate-3 (cited by Japanese Police)	6	N/A
Illegal Modification to Vehicle	4	N/A
Illegally parked in designated handicap area (no decal, license or placard displayed)	2	N/A
Improper Lane Change	3	N/A
Improper Lane Usage (Driving center yellow turn lanes)	3	N/A
Improper Parking **See Note 4**	3	N/A
Improper Passing or Overtaking	3	N/A
Improper Turning Movements (no official sign involved)	4	N/A

Improper Registration (fraudulent tags)	3	Vehicle Impound
Inattentive or Distracted Driving (**1st offense**)	6	N/A
Inattentive or Distracted Driving (**2nd offense**)	N/A	30-Day Suspension
Inciting Traffic Infraction	3	N/A
Littering	3	N/A
Loud Stereo (Heard beyond 30 ft from vehicle)	3	N/A
Mental or Physical Impairment to Degree Unsafe to Drive (e.g. concussion, broken limb, etc.)	3	N/A
Misuse of handicap decal. **See Note 2**	N/A	6-Month Revocation
No Vehicle Registration in Possession	3	N/A
Non-motorized vehicle safety violation (points only apply to persons age 18 or older)	3	N/A
Open Container of Alcohol (Seal broken, not in trunk) (Driver assessed points)	6	N/A
Operating an Unsafe Vehicle	4	Impound Vehicle
Other Moving violations, (involving driver behavior only)	2	N/A
Operating a Motorcycle/Moped Exceeding Size Category Stated on USFJ Form 4EJ	3	N/A
Operating RADAR/LIDAR detection devices to indicate the presence of speed recording instruments or to transmit simulated erroneous speed (prohibited on DoD installations)	3	N/A
Overloaded Vehicle	3	N/A
Personal Protective Equipment (PPE) for motorcycle, motor scooter, ATV, etc. – failure to wear or wear properly (e.g. gloves, long sleeves, helmet, etc.)	3	N/A
Racing/Speed Contests	N/A	6-Month Revocation
Receive 12 Points within 12 consecutive months	N/A	6-Month Revocation
Receive 18 Points within 24 consecutive months	N/A	1-Year Revocation
Receive 6 non-moving violations within 12 consecutive months: Member will lose POV privileges only	N/A	1-Year Revocation
Reckless Driving, Non Injury	N/A	6-Month Revocation
Reckless Driving, Personal Injury	N/A	1-Year Revocation
Refusal to Breath (BrAC), Blood (BAC), or Urine Test **See Note 6**	N/A	2-Year Revocation
Refusal to Submit to a Sobriety (Alcohol) Checkpoint **See Note 6**	N/A	2-Year Revocation
Speeding – 1-17 KPH Over Speed Limit **See Note 3**	3	N/A
Speeding – 18-24 KPH Over Speed Limit **See Note 3**	4	N/A
Speeding – 25-32 KPH Over Speed Limit **See Note 3**	5	N/A
Speeding – 33 KPH or more constitutes Reckless Driving	N/A	6-Month Revocation
Speeding in active School Zone	N/A	Double the Points

Speeding 2x limit in active School Zone	N/A	6- Month Revocation
Speed Too Fast for Conditions (No Accident)	3	N/A
Speed Too Fast for Conditions (Causing Accident)	6	N/A
Speed Too Slow Causing Potential Hazard	2	N/A
Utilizing a handheld electronic device while driving (First Offense). Examples include: cell phone, iPod, iPod Touch, and other MP3 players). **Note**: Hands free devices, devices in hands free operating mode, and devices mounted on docks are authorized	3	N/A
Utilizing a handheld electronic device while driving (Second Offense w/in 1 year). Examples include: cell phone, iPod, iPod Touch, and other MP3 players). **Note**: Hands free devices, devices in hands free operating mode, and devices mounted on docks are authorized	N/A	3-Month Suspension
Unattended Children in Vehicles: **Age of Child: Newborn to Under 6 Years of Age**: Left unattended in a vehicle. **Age of Child: 7 - 9 Years of Age**: Left unattended in a vehicle with the keys and/or in excess of 15 minutes. **Age of Child: 10 - 11 Years of Age**: Left unattended in a vehicle with keys.	N/A N/A N/A	3-Month Suspension 60-Day Suspension 30-Day Suspension
Unattended animal in vehicle, and in distress. **Note**: Animals were left in dangerous conditions in vehicle	6	N/A
Unattended vehicle (while running)	3	N/A
Unauthorized Tinted, Muddy, Dirty or Obstructed Windows	3	N/A
Unauthorized towing of persons or things by vehicle	3	N/A
Unloading passengers in a no drop off zone	3	N/A
Unsafe Backing	3	N/A
Unsafe Passing of Troop Formation or Physical Training	4	N/A
Vehicle Equipment (Standard) Removed, i.e., Doors, Hood, Windows, etc. (Vehicle must be parked until fixed)	4	N/A
Wearing two headphones/earphones, or over the ear style headphones/earphones while driving motor vehicle (two or more wheels) or bicycling. A single in ear earphone is acceptable.	3	N/A
Unauthorized Dumping of Waste **See Note 7**	6	N/A
Notes: 1. Applies to not using or when child restraint system is improperly installed, i.e., car seat, infant carrier, booster seat, belt/strap modification (when required by manufacturer), etc.		
Assess four points when no restraint system of any kind is used.		

2. When a vehicle has a handicap decal displayed, but the occupant is not the decal or placard registrant and is not dropping off or picking up the handicapped registrant. Also includes parking in an area designated for "Van" access only, and handicap registrant has parked another vehicle instead.
3. When violation occurs within an active school zone, double the amount of points assessed.
4. When designated in local parking plan (i.e., double parked, parked in reserved parking, against the flow of traffic and those areas designated for emergency vehicles).
5. Exhibition of Speed examples: Screeching of tires, racing, and accelerating at a dangerous speed (with or without breaking traction).
6. Refusal on and off base is presumed Driving Under the Influence.
7. IAW 18 WG/CC Unauthorized Dumping Policy Memorandum, this applies to personnel who are caught bringing waste from off-base in a vehicle and dumping it on Kadena AB property. May also apply to personnel dumping waste outside of approved waste receptacles. Personnel who do not possess a SOFA license may be subject to the Kadena Disciplinary Action Program.
8. Fleeing the Scene of an Accident will be a minimum of a 3-month suspension, up to a 12-month revocation. For military members, the term length will be at discretion of the offender's Commander. For MLC or IHA employees, the Commander exercising control over their position will determine the length of suspension or revocation for on-base only. For civilian employees, contractors, dependents, or others who are not military but hold SOFA status, KDAP will determine the length of suspension or revocation. For any other driver with a status not covered (i.e. Local Nationals, non-SOFA U.S. civilians, non-SOFA U.S. military retirees, taxicab drivers, accompanied guests of USFJ personnel, etc.) the term will be an automatic 12-month revocation of on-base driving only.|

5.2.1. Traffic Citation Rebuttal Process.

5.2.1.1. When an individual receives a ticket and feels the ticket was unjustly issued, the individual can rebut the ticket. The individual must draft a memorandum within 14 calendar days, specifically citing evidence that disproves the validity of the ticket. The memorandum and related information can be obtained from the Reports and Analysis office at 634- 1134. The package will only be submitted after it has been completed by the individual and reviewed by Reports and Analysis.

5.2.1.2. Reports and Analysis will not review or forward ticket rebuttals without a memorandum letter endorsed by the violator's Commander or Agency Chief. If the Commander or Agency Chief non-concurs with the ticket rebuttal package, it will not be processed.

5.2.1.3. The Reports and Analysis Office will review the rebuttal package and make a recommendation to the DFC as to its validity. If the DFC determines the ticket should be voided, the rebuttal process is complete and the individual is notified of the action taken through his or her Commander, Agency Chief, or First Sergeant. If the DFC determines the ticket is valid, the ticket will be forwarded to the 18 MSG/CD or designee with a recommendation of why the ticket is valid.

5.2.1.4. The 18 MSG/CD or designee will review the rebuttal package and make the final determination. The rebuttal package will then be returned to the Reports and Analysis

Office, who will inform the Commander, Agency Chief, or First Sergeant of the final decision. All ticket rebuttal decisions made by the 18 MSG/CD are final.

5.3. Point System Application.

5.3.1. The Reports and Analysis Office routinely receives notice/reports of off-base traffic offenses from all U.S. Forces Japan law enforcement agencies, local GOJ law enforcement agencies, and Continental United States (CONUS) law enforcement agencies. All tickets will be entered into the individual's driving record and based upon the ticket, points will be assessed against the individual if they operate a motor vehicle on KAB. IAW USFJ 31-205, the use of the point system and procedures prescribed herein are mandatory for on and off base offenses. The point system applies to civilian personnel (i.e. AAFES, Defense Commissary Agency [DeCA], DoDEA, DoD, Dependents, contractors, and all other SOFA status civilians) and all military personnel operating GMVs and POVs on and off the installation. It applies to all Local Nationals operating GMVs and POVs on KAB. The point system will be used for on and off installation citations and annotated on the individual's driving history. When two or more violations are written on a single occasion, points will be assessed for each violation. **NOTE:** Points are assessed from other agencies (both U.S. and Japanese) to ensure drivers operate safely while outside the jurisdictional areas applicable to this instruction.

5.3.2. An advisory letter will be forwarded to the Unit Commander, Agency Chief, or First Sergeant on any person who receives a citation on or off installation.

5.3.3. The Security Forces Liaison Office will coordinate all civil traffic matters with 18 WG/JA.

5.4. Point System Procedures.

5.4.1. The Reports and Analysis Office will record traffic violations and assess points IAW AFI 31-218(I), AFMAN 31-116, USFJI 31-205, and this instruction in several ways:

5.4.1.1. AFJIS Incident Report.

5.4.1.2. DD Form 1408, *Armed Forces Traffic Ticket.*

5.4.1.3. Kadena AB Form 7, *Notification of Traffic Infraction*, for off-base offenses.

5.4.1.4. Kadena AB Form 10, *Notification of Alleged Offense*, for off-base offenses.

5.4.2. **Traffic Complaints** . When a traffic complaint is received on an individual, the complainant must be willing to provide a written statement. Failure to provide a written statement or an adequate description of the vehicle (e.g. color, make, model, license plate number) could result in no action being taken. Once a written statement is obtained, the incident will be recorded in the Security Forces blotter. Security Forces Operations personnel will follow up on the complaint when sufficient information has been provided. Complaints against members of other services will be forwarded to the appropriate agency for follow-up/action, if warranted. Complaints against Air Force affiliated personnel will be forwarded to the responsible Air Force unit for follow-up/action. If there is sufficient probable cause, Security Forces may investigate the complaint and issue a DD Form 1408 to the alleged offender or take other actions IAW this instruction. Points will be assessed based on actions taken by Security Forces.

5.4.2.1. Off-Installation Traffic Activities. Security Forces maintain a close liaison with Japanese Police agencies, and when possible prompt notifications of offenses are made to Security Forces when SOFA vehicle operators are involved in traffic accidents or incidents. Japanese Police also provide prompt notice when SOFA vehicle operators are involved in or detained for serious violations of Japanese traffic laws. All SOFA personnel must provide Japanese Police Officials their DoD ID card and USFJ Form 4EJ upon request.

5.4.2.2. Most minor infractions of Japanese Traffic Code do not warrant Security Forces notification until after the fact. **NOTE:** Points will be assessed for off-base traffic infractions.

5.4.2.3. Personnel receiving the following off-base citations will accomplish the following upon coordination with the Staff Judge Advocate (18 WG/SJA):

5.4.2.3.1. If the violator was given a blue copy of the ticket, payment of the fine is the only requirement. The violator has seven days from the day after the citation is issued to pay the fine at a GOJ Bank or Post Office. **NOTE:** ALWAYS KEEP THE RECEIPT AS PROOF OF PAYMENT.

5.4.2.3.1.1. Failure to pay the fine within the seven day time period can result in arrest until the fine is paid. If fines cannot be paid within the seven day period, personnel must immediately contact the Security Forces Liaison Office and 18 WG/JA. **NOTE:** If a member wishes to rebut an off-base citation, they must do so before they pay the fine. For further info, contact the 18 SFS/Liaison Office at 634-2239.

5.4.2.4. If a violator receives the white copy of the traffic ticket, the violator must retain the ticket until contacted to report to court. The Japanese prosecutor will contact the Security Forces Liaison Office who, in-turn, will contact 18 WG/JA and the Unit Commander, Agency Chief, or First Sergeant.

5.4.2.4.1. The 18 WG/JA will coordinate with the violator's unit and subsequently place the violator on International Hold, pending adjudication. The violator is not permitted to depart the island on leave or TDY until the ticket is resolved. SOFA personnel requested to attend an interview with the Japanese police must first report to the legal office and obtain a briefing outlining the alleged violator's rights under the SOFA.

5.4.2.4.1.1. The 18 WG/JA will provide the Security Forces Liaison Office a monthly up to date listing of all personnel placed on International Hold.

5.4.2.4.2. Japanese Police Ticketing Procedures. The Security Forces Liaison Office is notified by the Japanese Police anytime a SOFA member is issued a traffic ticket. The Security Forces Liaison Office notifies 18 WG/JA of these infractions via the Kadena AB Form 7, *Notification of Traffic Infraction*, or the Kadena AB Form 10, *Notification of Alleged Offense*. The Kadena AB Form 7 and Form 10 will be coordinated through the violator's Commander, Agency Chief, or First Sergeant for action. The Commander signs a memorandum letter from the Reports and Analysis Office annotating what action was taken on the ticket and returns it to the Reports and Analysis Office within 14 days for updating and filing.

5.4.2.4.3. DD Form 1408. Tickets are forwarded to the Reports and Analysis Office for processing and dissemination. Upon receipt of the traffic ticket, or other law enforcement report, the Unit Commander, Agency Chief, or First Sergeant will conduct an inquiry and take disciplinary action as appropriate. The Commander signs a memorandum letter from the Reports and Analysis Office annotating what action was taken and returns it to the Reports and Analysis Office within 14 days for updating and filing. Personnel who are issued a DD Form 1408 are required to report directly to their First Sergeant within 24-hours.

5.4.2.4.4. An advisory letter will be forwarded to the Unit Commander, Agency Chief, and First Sergeant on any person who receives a citation. When an individual has six or more points, the unit should consider whether the driver would benefit from attending the Driver Improvement Course IAW AFI 91-207. The course focuses on improving behaviors in operational traffic environments and is aimed at those drivers who have displayed a trend of poor driving behaviors such as a history of accidents, speeding, reckless driving, or poor driving attitudes or knowledge. The Driver Improvement Course should not be used as a punishment tool or for personnel that lost their driving privileges as a result of an alcohol/drug related driving offense. Personnel required to attend the Driver Improvement Course must be scheduled through 18 WG/SE, 634- 7233/2196. Anyone who, after receiving six points or more, voluntarily attends the Driver Improvement Course may have up to three points removed from their SOFA driving history after proving successful completion.

5.4.2.4.5. Points assessed against personnel remain active and will be managed IAW AFI 31-218(I) and USFJI 31-205 via AFJIS.

5.4.2.4.6. Removal of points does not authorize removal of driving record entries for moving violations, chargeable accidents, suspensions, or revocations. Recorded entries will remain posted on individual driving records IAW AFI 31-218(I).

Chapter 6

IMPOUNDING/HOLDING PRIVATELY OWNED VEHICLES

6.1. General. The United States Marine Corps operates the Joint Service Vehicle Impound Lot (JSVIL) located on Camp Kinser, Building 409, DSN: 637-2210. Procedures for the impoundment and disposal of abandoned, unclaimed, and other categories of POV registered/owned by SOFA and non-SOFA personnel. This chapter provides an outline of the standards and procedures regarding towing, inventorying, searching, impounding, and disposing of POVs. For further guidance refer to MCIPAC-MCBBO 11240-1 or superseding instruction.

6.2. Implied Consent to Vehicle Impoundment. As a condition of accepting driving privileges, drivers provide their consent for the removal and impoundment of their POV IAW AFI 31-218(I), AFI 31-115, *Law and Order Operations*, USFJI 31-205, and this instruction. Drivers/the last registered owner, also agree to reimburse an authorized agency or contractor for the cost of towing, storage, and disposal should a need arise to remove or impound their motor vehicle.

6.3. Standards for Immediate Impoundment.

6.3.1. A vehicle will be impounded when it interferes with traffic, threatens public safety or convenience, is involved in criminal activity, contains evidence of criminal activity, is stolen/recovered, abandoned, has outdated administrative paperwork, creates a public eyesore, or meets any of the criteria covered herein. Impounding POVs is justified when any of the following conditions exist:

6.3.1.1. The vehicle is illegally parked.

6.3.1.2. On a street or bridge, in a tunnel, or is double-parked and interferes with the orderly flow of traffic.

6.3.1.3. The vehicle is on a sidewalk, within an intersection, on a crosswalk, in a fire lane, or is blocking a driveway or emergency exit door, so that the vehicle interferes with operations of a facility.

6.3.1.4. In a “tow-away” zone that is so marked with proper signs.

6.3.1.5. The vehicle is unattended in a restricted or controlled area and creating a nuisance or security hazard.

6.3.1.6. The vehicle interferes with:

6.3.1.6.1. Street cleaning operations; to include special events.

6.3.1.6.2. Emergency or clean-up operations associated with a natural disaster or fire.

6.3.1.7. The vehicle was used in a crime or contains evidence of criminal activity.

6.3.1.8. The vehicle has a serious mechanical issue or is a hazard to others using the public roadways.

6.3.1.9. The vehicle has been involved in a traffic accident and is unable to move under its own power, or the operator is either unavailable or incapable of having the vehicle removed.

6.3.1.10. When it is determined that the registered owner has departed Japan on PCS orders and there is no Power of Attorney (POA) on file at the Joint Service Vehicle Registration Office (JSVRO), or the existing POA is expired.

6.3.1.11. The vehicle has been used in black marketing activities.

6.3.1.12. The vehicle does not have or has expired:

6.3.1.12.1. Road Tax.

6.3.1.12.2. PDI.

6.3.1.12.3. GOJ inspection.

6.3.1.12.4. Military or Japanese registration.

6.3.1.13. Failing to initially register vehicle with the JSVRO.

6.3.1.14. The official seal securing the rear license plate has been removed, damaged, or altered. **NOTE:** When a vehicle, subject to impound, is impeding the flow of traffic, or is illegally parked, an attempt may be made to locate the owner of the vehicle if time permits. In no way are Security Forces required to contact a vehicle owner in order to relieve them of having their vehicle ticketed or impounded.

6.3.2. If after being cited for abandonment, the vehicle remains parked in excess of 72-hours in a public parking lot. This includes vehicles listed for sale at a place other than at one's residence (e.g., Bowling Center, Post Office, BX, etc.) or at a place other than the vehicle resale lot operated by the Auto Hobby Shop.

6.4. Vehicle Impound Procedures.

6.4.1. A Security Forces member will make copies of the vehicle paperwork (JCI, PDI, registration, Japanese title, road tax, etc.). The originals will remain with the owner as they will need these to resolve the reason for impoundment (i.e. Update road tax, PDI, etc.)

6.4.1.1. The patrol on scene will conduct a walkthrough to annotate the condition of the vehicle and afford occupants the opportunity to remove any items they do not wish to leave with the vehicle.

6.4.1.2. The Patrol will take the vehicle key(s). At this point 18 SFS has possession of the vehicle and the driver/owner is not authorized to schedule the tow or removal of the vehicle.

6.4.2. Security Forces will only transfer possession of the vehicle to the tow driver. Based on their work load, the tow driver will pick up the vehicle keys from Police Services and tow the vehicle the same day or the following duty day, and store it at JSVIL. For the status of the impounded vehicle, contact JSVIL at 637-2210 during normal duty hours Monday – Friday.

6.4.3. Security Forces will not release the keys to anyone but the tow driver once the process in **paragraph 6.4.1** has begun. The registered vehicle owner, or driver with a POA, must make contact with JSVIL to retrieve the vehicle.

6.5. Impoundment of Abandoned Vehicles. The following procedures apply for towing, searching, impounding, and inventorying abandoned vehicles. All vehicles in the above categories to include those located off base may be towed and impounded when Japanese authorities identify them as belonging to SOFA personnel and request assistance.

6.5.1. Procedures:

6.5.1.1. The 18 SFS will issue a DD Form 1408, *Armed Forces Traffic Ticket*, and DD Form 2504, *Abandoned Vehicle Notice*, simultaneously when they come in contact with or are notified of suspected abandoned vehicles. The Non-Commissioned Officer in Charge (NCOIC) of Police Services will track these vehicles.

6.5.1.2. The pink copy of the ticket will be placed on the vehicle. The violator (owner) may report within 72 hours to the BDOC (depending upon circumstances) and provide proof the vehicle is not abandoned. Proof must be presented that the vehicle is operational and meets the requirements of AFI 31-218(I), USFJI 31-203, and this instruction to be operated on the roads of KAB.

6.5.1.3. Owners will then report to Police Services to verify the issue has been resolved. At this time the abandoned vehicle notice will be cleared. The DD Form 1408 will be processed IAW this instruction.

6.5.1.4. When 72 hours have passed, and the owner has not reported to BDOC or Police Services, a reasonable attempt to identify and locate the registered owner may be made. If Police Services is unable to make contact, the vehicle may be towed to KAB's temporary impoundment lot. JSVIL will then be contacted to initiate impoundment action IAW MCIPAC-MCBBO 11240.1, *Motor Vehicle Registration and Equipment Safety Standards*. All due care and caution will be exercised during impoundment actions.

6.5.1.5. Property contained within abandoned vehicles is processed as outlined above, and will remain within the vehicle.

6.5.2. **Retrieving an Impounded Vehicle** : The process of retrieving a vehicle from JSVIL is determined on a case by case basis depending on the reason for being impounded:

6.5.2.1. Vehicles impounded subsequent to a DUI case. The owner is required to deregister the vehicle through JSVRO based on the revocation of their driving privileges.

6.5.2.2. Vehicles impounded due to expired insurance. The owner is required to have a valid insurance policy prior to retrieving the vehicle from JSVIL.

6.5.2.3. Vehicles impounded due to expired Japanese inspection. The vehicle owner must obtain a temporary license plate from JSVRO before they can retrieve the vehicle from JSVIL.

6.5.2.4. Vehicles impounded as a result of a vehicle accident and considered evidence will not be released until the case is completed and approval is granted by 18 SFS/S2, Security Forces Investigations, and 18 WG/JA.

6.5.2.5. In all cases, a letter signed by the vehicle owner's Unit Commander, Agency Chief, or First Sergeant is required to retrieve the vehicle from the JSVIL (see **Attachment 3**). Contact JSVIL at 637-2210 to determine required documentation to retrieve the vehicle.

6.6. Temporary Vehicle Hold Procedures. The following procedures apply for towing, operating (moving), holding, and processing POVs. For violations specified within this instruction, Security Forces may hold POVs temporarily.

6.6.1. Procedures: Security Forces will complete the required paper work and the vehicle will be parked in an adjacent/closest parking lot where the violator was stopped.

6.6.1.1. If a member is unable to drive, Security Forces will request permission to move the vehicle. If the vehicle is a safety concern, Security Forces must move the vehicle to a safe location regardless of permission. If the vehicle is not a safety concern and the operator is refusing to give permission for Security Forces personnel to move their vehicle, the vehicle will be towed at the owner's expense. On-scene Security Forces will decide on the location and the vehicle owner will be notified of that location.

6.6.2. Vehicle(s) not claimed or owners failing to provide documentation as required may be impounded IAW this instruction.

6.7. Towing Support. IAW AFI 24-301, *Ground Transportation*, 18 LRS will provide 24-hour towing support to remove vehicles. Security Forces may also use a contracted towing service.

6.7.1. The 18 LRS Vehicle Dispatcher may be called to move any disabled vehicle causing immediate traffic safety or fire-fighting obstacles on base. This type of support will only be requested when an operator/owner is incapable (medical emergency or unable to be contacted) of making arrangements for removal. This request is limited to Security Forces, Fire Department, Group Commanders, or higher authority.

6.7.2. No 18 LRS tow truck operators can be held liable for any damages incurred to any vehicles being towed or removed under these conditions.

6.7.2.1. Towing will be limited to a nearby parking lot or the parking lot of Building 705. When vehicles are required to be moved, they will be parked in the nearest parking lot, or in an authorized parking space until vehicle tow or movement can be safely accomplished. The parking lot of Building 705 will be used as a temporary towing area for short periods of time, when awaiting tow after impound, or for temporary storage of vehicles placed on hold. The Security Forces temporary impound lot will only be used for vehicles involved in ongoing investigations, or in cases that require further action by Security Forces. Regardless of the type incident, the vehicle operators/owners will always be responsible for further removal or towing.

JOEL L. CAREY,
Brigadier General, USAF
Commander

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

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DoDI 6055.04, *DoD Traffic Safety Program*, 20 April 2009

DoDM 4500.36, *Acquisition, Management, and Use of DoD Non-Tactical Vehicles,* 7 July 2015

USFJI 31-203, *Law Enforcement Procedures in Japan*, 5 November 2017

USFJI 31-205, *Motor Vehicle Operations and Traffic Supervision*, 15 August 2017

AFI 24-301, *Ground Transportation*, 22 October 2019

AFI 31-101, *Integrated Defense (ID)*, 25 March 2020

AFI 31-101_PACAFSUP-O, *Integrated Defense (ID)*, 28 February 2018

AFI 31-115, *Law and Order Operations,*18 August 2020

AFI 31-218(I), *Motor Vehicle Traffic Supervision*, 22 May 2006

AFI 33-322, *Records Management and Information Governance Program*, 23 March 2020

AFI 34-219, *Alcoholic Beverage Program*, 30 April 2019

AFI 44-121, *Alcohol and Drug Abuse Prevention and Treatment (ADAPT) Program,* 18 July 2018

AFI 90-802, *Risk Management*, 1 April 2019

AFI 91-207, *The US Air Force Traffic Safety Program*, 26 July 2019

AFMAN24-306, *Operation of Air Force Government Motor Vehicles*, 30 July 2020

AFI 13-213_KADENAABSUP, *Airfield Driving*, 23 September 2020

KADENAABI 51-501, *Civilian and Family Member Misconduct,* 6 August 2020

KAB Plan 31-101, *Integrated Defense Plan*, 15 November 2015

MCIPAC-MCBBO 11240.1, *Motor Vehicle Registration and Equipment Safety Standards*, 25 January 2016

Prescribed Forms

Kadena AB Form 5EJ, *Minor Traffic Accident Information Sheet*

Kadena AB Form 6, *Alcohol Influence Report/Standardized Field Sobriety Tests*

Kadena AB Form 7, *Notification of Traffic Infraction*

Kadena AB Form 10, *Notification of Alleged Offense*

Adopted Forms

DD Form 1173, *Uniformed Services Identification and Privilege Card*

DD Form 1408, *Armed Forces Traffic Ticket*

DD Form 1920, *Alcohol Incident Report*

DD Form 2504, *Abandoned Vehicle Notice*

AF Form 75, *Visitor/Vehicle Pass*

AF Form 332, *Base Civil Engineer Work Request*

AF Form 483, *Certificate of Competency*

AF Form 847, *Recommendation for Change of Publication*

AF Form 2293, *US Air Force Motor Vehicle Operator Identification Card*

USFJ Form 4EJ, *U.S. Forces, Japan Operator's Permit for Civilian Vehicle (PA)*

USFJ Form 15A, *Vehicle Registration Decal (For Use on 4-Wheel Vehicles)*

USFJ Form 15B, *Vehicle Registration Decal (For Use on 2-Wheel Vehicles)*

Abbreviations and Acronyms

AAFES—Army and Air Force Exchange Services

ADAPT—Alcohol and Drug Abuse Prevention and Treatment

AFI—Air Force Instruction

AFJIS—Air Force Justice Information System

AFMAN—Air Force Manual

AFRIMS—Air Force Records Information Management System

ALPA—Automobile License Plate Association

AMC—Air Mobility Command

ANSI—American National Standards Institute

ATV—All-Terrain Vehicle

BAC—Blood Alcohol Content

BrAC—Breath Alcohol Concentration

BDOC—Base Defense Operations Center

BTRO—Base Traffic Review Officer

BX—Base Exchange

CAC—Common Access Card

CE—Civil Engineer

CONUS—Continental United States

DBIDS—Defense Biometric Identification System

DEC—Driver's Education Course

DeCA—Defense Commissary Agency

DEROS—Date Eligible to Return from Overseas

DFC—Defense Force Commander

DoD—Department of Defense

DoDD—Department of Defense Directive

DoDEA—Department of Defense Education Activity

DOT—Department of Transportation

DUI—Driving Under the Influence

EAL—Entry Authority List

ECP—Entry Control Point

FOIA—Freedom of Information Act

GMV—Government Motor Vehicle

GOJ—Government of Japan

GPS—Global Positioning System

GVWR—Gross Vehicle Weight Rating

HGN—Horizontal Gaze Nystagmus

IAW—In accordance with

ID—Identification

IHA—Indirect Hire Agreement

JCI—Japanese Compulsory Insurance

JSVIL—Joint Services Vehicle Impound Lot

JSVRO—Joint Services Vehicle Registration Office

KAB—Kadena Air Base

KDAP—Kadena Disciplinary Action Program

KPH—Kilometers per hour

LIDAR—Light Detection and Ranging

LN—Local National

LTO—Land Transportation Office

MCIPAC-MCBBO—Marine Corps Installations Pacific-MCB Camp Butler Order

MLC—Master Labor Contract

MSF—Motorcycle Safety Foundation

NAF—Non-Appropriated Fund

NCOIC—Non-Commissioned Officer in Charge
NHTSA—National Highway Traffic Safety Administration
NTV—Non Tactical Vehicle
OCONUS—Outside Continental United States
ORM—Operational Risk Management
OPR—Office of Primary Responsibility
OV—Official Vehicle
PBT—Preliminary Breath Test
PCS—Permanent Change of Station
PDI—Property Damage Liability Insurance
POA—Power of Attorney
POV—Privately Owned Vehicle
PPE—Personal Protective Equipment
RADAR—Radio Detection and Ranging
RAM—Random Anti-terrorism Measure
RDS—Records Disposition Schedule
RIEPC—Random Installation Entry/Exit Point Check
RoJ—Residents of Japan
S2—Security Forces Investigations
S3—Security Forces Operations
S5B—Security Forces Pass and Registration
S5R—Security Forces Reports and Analysis
S5L—Security Forces Liaison Office
SF—Security Forces
SFST—Standardized Field Sobriety Testing
SJA—Staff Judge Advocate
SMS—Short Message Service
SOFA—Status of Force Agreement
SURF—Single Unit Retrieval Form
TSCG—Traffic Safety Coordination Group
TDY—Temporary Duty
USFJ—United States Forces Japan

USG—United States Government

U.S.C.—United States Code

USO—United Services Organization

VCC—Visitor Control Center

VCO—Vehicle Control Officer

VIP—Very Important People

Terms

Ability—The physical proximity coupled with the motor skills to put the vehicle in motion by manipulation of the ignition, gears, and/or release of the emergency brake. A young child being left unattended in a vehicle could have the ability and physical motor skills to release the emergency brake and put a vehicle into motion.

Access—The right and privilege to enter or utilize.

Aggressive/High Risk Driver—The National Highway Traffic Safety Administration (NHTSA) defines aggressive driving as "the operation of a motor vehicle in a manner that endangers or is likely to endanger persons or property." Aggressive driving is a traffic offense, not a criminal offense. Aggressive driving manifests itself as a combination of reckless operating characteristics resulting in highway behavior dangerous to other roadway users, and aggressive driving contributes to needless losses. These behaviors include a list of "symptoms" that create serious risk when combined with other variables such as vehicles, other drivers, traffic congestion, visibility, and road conditions. Some of these aggressive driver behaviors include:

Excessive speeding

Tailgating
Erratic lane-changes
Excessive acceleration and braking unsafe passing
Intentional red light running
Passing off the paved portion of highway
Lane change violations
Speeding beyond the traffic flow
Failure to yield at ramps or intersections

Base Traffic Review Officer (BTRO)—The 18th Mission Support Group, Deputy Commander (18 MSG/CD or equivalent) or in his/her absence, the 18 MSG/CC has been designated as the BTRO by the 18 WG/CC.

Driving—Operating a motor vehicle on an active roadway, or other surface, with the motor running, including while temporarily stationary because of traffic, a traffic light or stop sign, or otherwise.

Drunk/Impaired—Any intoxication that is sufficient to impair the rational and full exercise of the mental or physical faculties. The term drunk is used in relation to intoxication by alcohol. The term impaired is used in relation to intoxication by other substances other than alcohol.

Distracted Driving—Any activity that diverts full attention from driving, including talking or texting on a cellular telephone, eating or drinking in a manner to obstruct vision or attention, or adjusting electronic devices, entertainment, or navigation systems. Anything that takes attention away from the task of safe driving.

Entry Authority List (EAL)—Authenticated, typewritten, and chronological (e.g. alphabetized) source document identifying guests by full name, destination, and the inclusive period during which access is required. The sponsor assumes responsibility for the conduct and actions of their guests while on the installation. EALs are designed to give access to individuals, not their privately owned vehicles. If vehicle access is required, the sponsor will annotate and verify the visitor meets insurance requirements.

Japanese Compulsory Insurance (JCI)—Required by Article 5 of the Automobile Liability Security Law of Japan. JCI provides personal injury type coverage with limits. Under this law, no automobile may be driven until the owner shows proof of the compulsory insurance. It does not cover any liability for any property a vehicle operator might damage by operating a motor vehicle.

Minor—Vehicle accidents with functional damage estimated at $10,000 or less of damages (combined) and no injuries (beyond superficial). Although minor vehicle accidents are classified as a reported accident, they do not require a detailed investigation. The Security Forces patrolman does, however, have the discretion whether or not to issue a DD Form 1408 if the situation warrants. Monetary compensation is handled privately through the vehicle operators' insurance companies. Alleged injuries not reported at the accident scene but subsequently treated or reported will not change the classification of a minor vehicle accident to a major vehicle accident. Individuals reporting alleged injuries after the fact will be instructed to provide all medical documentation to their insurance companies or other agencies requesting the information. Minor motor vehicle accidents, not involving Security Forces response, must be reported to U.S. Forces Law Enforcement agencies as soon as possible, but no longer than 72 hours after the accident. **NOTE:** Hit & Run, Suspected DUI, and Uninsured Motorist/Drivers warrant SF response.

Major—Vehicle accidents estimated at more than $10,000 (combined), disabling damage (above), injuries (other than superficial), death, or hard to explain, i.e., no correlation to the evidence on-hand. Responding Security Forces patrols can either cite a vehicle operator at fault on the scene, if evidence is obvious or later after the investigation is completed. For major accidents, Security Forces has a minimum of 72 hours to complete the investigation and associated paperwork.

On Base—The areas confined within Kadena Air Base to include the 18th Munitions storage area, Kadena Marina, O'Donnell Gardens on Camp Shields, Chibana Military Family Housing areas, Chibana Recreation area, and the Okuma Joint Services Recreation area. This does NOT include the off-installation roadways leading from Kadena Air Base to housing areas. Off Base Jurisdiction IAW USFJI 31-203.

Operator—The person who operates a vehicle, aircraft, or vessels—includes not only driving or guiding a vehicle while it is in motion, either in person or through the agency of another, but also setting of its motive power in action, or the manipulation of its controls so as to cause the particular vehicle to move.

Parked/Standing—The vehicle is stationary, with or without the engine running, with or without the operator at the controls. Parked and/or standing vehicles can be legally or illegally parked. For the purpose of enforcement, there is no difference between parked and standing. No vehicle will be left unattended with the engine running.

Passes to Foreign Nationals—IAW USFJI 31-203, Foreign Nationals are defined as Citizens or nationals of nations, other than Japan, who are subject to the jurisdiction of the Japanese courts and are not USFJ personnel or contractual persons.

Passenger—Person within the vehicle, other than the operator.

Pedestrian—Any person who is near or on a roadway using a sidewalk, roadway edge, parking lot, pedestrian road crossing, driveway, or similar location.

Pedestrian Right of Way—All vehicle traffic will yield and come to a complete stop if necessary upon a pedestrian approaching under such circumstances and within proximity as to cause danger of a collision unless one grants the other precedence. Pedestrians have the explicit right-of-way in all crosswalks, parking lots, on all sidewalks, or when leaving a sidewalk to cross a roadway at an intersection with a traffic light, when the light is red and no crosswalk is painted on the roadway.

Physical Control and Actual Physical Control—These terms are synonymous. They describe the present capability and power to dominate, direct, or regulate the vehicle either in person or through the agency of another, regardless of whether such vehicle is operated. For example, the intoxicated person seated behind the steering wheel of a vehicle with the key in the vehicle in or near the ignition but with the engine not turned on could be deemed in actual physical control of the vehicle. However, the person asleep in the back seat with the keys in his or her pocket would not be deemed in actual physical control. Physical control necessarily encompasses operation.

Random Installation Entry/Exit Point Check (RIEPC)—Administrative inspections directed by the Installation Commander designed to protect the readiness, health, and welfare of the installation and its people.

Reckless Driving—The operation or physical control of a vehicle is "reckless" when, "Any person who drives any vehicle in a willful and wanton disregard for the safety of persons or property or in such a way the vehicle is not intended to be driven is guilty of reckless driving". Exceeding any posted speed limit by 33 KPH or more.

Inciting Traffic Infraction—Any persons subject to this Instruction who "incites" others to commit traffic infractions shall be cited under this provision. "Incite" is defined as any person who urges, cheers, encourages or gathers to observe others engage in unlawful driving activities under which there is a substantial likelihood of committing a traffic infraction as outlined in this instruction.

Revocation—Loss of driving privileges for 6 months or longer.

Roadway—A portion of a highway improved, designed or ordinarily used for vehicular travel, exclusive of the sidewalk, berm, or shoulder even though persons riding bicycles, or other human powered vehicles use such sidewalk, berm, or shoulder. A highway typically includes two or more separate roadways. The term "roadway" as used herein, shall refer to any such roadway separately, but not to all such roadways collectively. Roadway lanes are identified from the curb to centerline.

Road Rage—A deliberate attempt to harm other persons or property arising from an incident involving use of a motor vehicle. This is a criminal matter and thus will not be addressed further.

Skater—Individual operating roller-skates, rollerblades, a skateboard, or a T-Handled board or scooter.

Sobriety Checkpoints—Sobriety checkpoints are randomized or based on crime trend and traffic enforcement analysis, and are designed to protect the readiness, health, and welfare of the installation. Security Forces personnel, as augmented by 18th Wing units, conduct checks as directed by the base Magistrate.

SOFA Personnel—Refers to all members of the U.S. Armed Forces, members of the civilian component and their dependents, as defined in Article I of the reference (b), and contractor personnel defined in Article XIV of the reference (b). Not included in this definition are members of the United States Embassy, United States Government agency employees on duty in Japan for other than United States Armed Forces, Mutual Defense Assistance Office, Japanese personnel, United States citizens who are residents of Japan forces of the United States and United Nations Forces personnel present in Japan who, although granted certain logistical support and privileges, have no status under the SOFA. Suspension—Loss of driving privileges for less than 6 months.

U-Turn—Turning a vehicle on a roadway so as to go in the opposite direction whether done by one continuous move or not.

United States Official Contractors and their Employees—Refers to all persons, included corporations organized under the laws of the United States, and their employees who are ordinarily residents in the United States as defined in Article XIV of the reference (b) and so designated by USFJ.

Vehicle—Every device in, upon, or by which any person or property is or may be transported or drawn upon a highway, excepting devices moved by human power or used exclusively upon stationary rails or tracks.

Attachment 2

U.S. - GOJ COMPARISON TABLE FOR BLOOD ALCOHOL CONCENTRATION

Table A2.1. GOJ Comparison.

U.S. INTOXILIZER BREATHALYZER (See Note 1)	BLOOD ALCOHOL CONCENTRATION (BAC) (See Note 2)	JAPAN KITAGAWA-SHIKI BALLOON TEST (See Note 3)
0.01 %	0.01 %	0.05 mg
0.02 %	0.02 %	0.10 mg
0.03 %	0.03 %	0.15 mg U.S./GOJ DUI
0.04 %	0.04 %	0.20 mg
0.05 %	0.05 %	0.25 mg
0.06 %	0.06 %	0.30 mg
0.07 %	0.07 %	0.35 mg
0.08 %	0.08 %	0.40 mg Intoxicated Driving
0.09 %	0.09 %	0.45 mg
0.10 %	0.10 %	0.50 mg
0.11 %	0.11 %	0.55 mg
0.12 %	0.12 %	0.60 mg
0.13 %	0.13 %	0.65 mg
0.14 %	0.14 %	0.70 mg
0.15 %	0.15 %	0.75 mg
0.16 %	0.16 %	0.80 mg
0.17 %	0.17 %	0.85 mg
0.18 %	0.18 %	0.90 mg
0.19 %	0.19 %	0.95 mg
0.20 %	0.20 %	1.00 mg
0.21 %	0.21 %	1.05 mg
0.22 %	0.22 %	1.10 mg
0.23 %	0.23 %	1.15 mg
0.24 %	0.24 %	1.20 mg
0.25 %	0.25 %	1.25 mg
0.26 %	0.26 %	1.30 mg
0.27 %	0.27 %	1.35 mg
0.28 %	0.28 %	1.40 mg
0.29 %	0.29 %	1.45 mg
0.30 %	0.30 %	1.50 mg

Notes:
1. Intoxilyzer® percentage is based on milligrams of alcohol per 100 millimeters of blood.
2. Blood alcohol concentration is based on grams of alcohol per 100 cubic centimeters of blood.
3. Balloon test percentage is based on 1 milligram of alcohol to 1 liter of expired breath.

Attachment 3

SAMPLE REQUEST FOR RELEASE OF IMPOUNDED VEHICLE FORMAT

Figure A3.1. Request for Release of Impounded Vehicle Format.

DATE

MEMORANDUM FOR 18 SFS/S3 & PROVOST MARSHAL,
MARINE CORPS BASE, CAMP S. D. BUTLER

FROM: NAME OF REQUESTOR

SUBJECT: Request for Release of Impounded Vehicle

1. My privately owned vehicle was impounded on (date) in connection with a case of (DUI/Intoxicated Driving), expired JCI, expired road tax, reckless driving, illegal parking, abandonment or other criminal activity). The vehicle is a (year, color, make, model, and license plate number).

2. My command has taken final action on this incident; likewise, final disposition has been completed with the Base Traffic Review Officer (if applicable).

(REQUESTER WILL USE ONE OF THE FOLLOWING PARAGRAPHS)
3. My driving privileges were not suspended or revoked, so I request the vehicle be turned over to me. Or insert the appropriate:

3.1. My driving privileges were suspended for less than 6 months; therefore, I request my vehicle be released into the custody of (Full Name, Rank, and SSAN).

3.2. My driving privileges were revoked for 6 months or more; therefore, I am going to de-register, sell, or dispose of my vehicle. I request release of the registration and title papers so I can accomplish deregistration/title transfer.

Requestor's Signature Block

1st Ind, First Sergeant/Unit Commander/Agency Chief

MEMORANDUM FOR 18 SFS/S5R

Concur/Nonconcur.

Final action has been taken on this case, and there is no further need to hold the vehicle.

Unit CC/First Sergeant/Agency Chief
Signature Block

2nd Ind,

MEMORANDUM FOR PROVOST MARSHAL, MARINE CORPS BASE, CAMP S. D. BUTLER

Concur/Nonconcur.

18 SFS/S3 Representative
Signature Block